

**BEFORE THE  
FEDERAL MARITIME COMMISSION  
OFFICE OF ADMINISTRATIVE LAW JUDGES**

SOUTHERN INTERNATIONAL CO., LTD.,

Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,

Respondent.

DOCKET NO. 25-24

**RESPONDENT DAYNAMEZ GROUP OF COMPANIES LLC’S RESPONSE TO  
MOTION TO COMPEL INCLUDING CONSOLIDATED, SIGNED AND VERIFIED  
SUPPLEMENTAL ANSWERS TO COMPLAINANT’S FIRST SET OF  
INTERROGATORIES (NOS. 1–18), AMENDED RESPONSE TO REQUEST FOR  
ADMISSION NO. 12, AND SUPPLEMENTAL RESPONSES TO REQUESTS FOR  
PRODUCTION**

**PRELIMINARY STATEMENT**

1. Respondent Daynamez Group of Companies LLC (“Daynamez”) serves these consolidated responses in reply to the deficiencies asserted in Complainant Southern International Co., Ltd.’s (“SIC”) Motion to Compel dated July 2, 2026, and its supporting Appendix. Every Interrogatory, the Request for Admission, and every Request for Production addressed in SIC’s Motion was previously and substantively answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” (the “June 12 Response”), which SIC itself reproduced in full in its Appendix as Exhibit 6 (CMTC-0050–0104), together with Daynamez’s Bates-stamped production DAYNAMEZ-000001 through DAYNAMEZ-000103 (App. Ex. 13).
2. SIC’s principal remaining objection is that the June 12 answers were not accompanied by an executed signature and verification. Without conceding that its prior responses were deficient, Daynamez cures that objection by restating its answers to Interrogatory Nos. 1 through 18 in one complete set, signed and verified below by the person who furnished the answers, and by serving a direct amended response to Request for Admission No. 12 in the form requested.
3. The Cross-Reference Table below identifies, for each item raised in SIC’s Motion, the precise pages of the June 12 Response — and the corresponding pages of SIC’s own Appendix — where the item was previously answered. SIC has therefore been in possession of the substance of each answer since June 12, 2026.

4. Daynamez's Counterclaim has been dismissed. Consistent with paragraph 8 of SIC's Statement of Remaining Discovery Deficiencies, matters referenced in these responses that relate solely to the dismissed Counterclaim are identified as such where applicable, and Daynamez limits its reliance on such matters to any live affirmative defense, causation or mitigation contention, or rebuttal that remains in this proceeding.

5. These responses are made without waiver of, and expressly preserve, all objections previously asserted by Daynamez. Objections that Daynamez continues to maintain are adopted by the separate signature of counsel below.

6. As further explained, the concerns in the Motion to Compel are addressed in the Amended Responses. This is more than a good faith effort to comply with Discovery and we expect the Claimant to do likewise.

#### **CROSS-REFERENCE TABLE — WHERE EACH ITEM WAS PREVIOUSLY ANSWERED**

| <b>Item in SIC's Motion</b>   | <b>June 12, 2026 Daynamez Response To Attachment A Document (page)</b> | <b>SIC's Own Appendix, Ex. 6 (CMTC page)</b> |
|-------------------------------|------------------------------------------------------------------------|----------------------------------------------|
| Interrogatory No. 1           | p. 12                                                                  | CMTC-0062                                    |
| Interrogatory No. 2           | pp. 12–14                                                              | CMTC-0062–CMTC-0064                          |
| Interrogatory No. 3           | pp. 14–15                                                              | CMTC-0064–CMTC-0065                          |
| Interrogatory No. 4           | p. 15                                                                  | CMTC-0065                                    |
| Interrogatory No. 5           | pp. 15–16                                                              | CMTC-0065–CMTC-0066                          |
| Interrogatory No. 6           | pp. 16–18                                                              | CMTC-0066–CMTC-0067                          |
| Interrogatory No. 7           | pp. 18–19                                                              | CMTC-0068–CMTC-0069                          |
| Interrogatory No. 8           | pp. 19–20                                                              | CMTC-0069–CMTC-0070                          |
| Interrogatory No. 9           | p. 20                                                                  | CMTC-0070                                    |
| Interrogatory No. 10          | pp. 20–21                                                              | CMTC-0070–CMTC-0071                          |
| Interrogatory No. 11          | pp. 21–22                                                              | CMTC-0071–CMTC-0072                          |
| Interrogatory No. 12          | pp. 22–23                                                              | CMTC-0072–CMTC-0073                          |
| Interrogatory No. 13          | pp. 23–25                                                              | CMTC-0073–CMTC-0075                          |
| Interrogatory No. 14          | pp. 25–26                                                              | CMTC-0075–CMTC-0076                          |
| Interrogatory No. 15          | pp. 26–27                                                              | CMTC-0076–CMTC-0077                          |
| Interrogatory No. 16          | pp. 27–28                                                              | CMTC-0077                                    |
| Interrogatory No. 17          | p. 28                                                                  | CMTC-0077–CMTC-0078                          |
| Interrogatory No. 18          | pp. 28–31                                                              | CMTC-0078–CMTC-0079                          |
| Request for Admission No. 12  | p. 8                                                                   | CMTC-0058                                    |
| Request for Production No. 1  | p. 31                                                                  | CMTC-0080                                    |
| Request for Production No. 2  | pp. 31–32                                                              | CMTC-0080–CMTC-0081                          |
| Request for Production No. 4  | pp. 32–33                                                              | CMTC-0081–CMTC-0082                          |
| Request for Production No. 5  | pp. 33–34                                                              | CMTC-0082–CMTC-0083                          |
| Request for Production No. 6  | pp. 34–35                                                              | CMTC-0083–CMTC-0085                          |
| Request for Production No. 13 | pp. 36–37                                                              | CMTC-0085–CMTC-0086                          |
| Request for Production No. 15 | pp. 37–38                                                              | CMTC-0086–CMTC-0087                          |

|                               |           |                     |
|-------------------------------|-----------|---------------------|
| Request for Production No. 16 | p. 38     | CMTC-0087           |
| Request for Production No. 17 | pp. 38–39 | CMTC-0087–CMTC-0088 |
| Request for Production No. 18 | p. 39     | CMTC-0088           |
| Request for Production No. 19 | pp. 39–40 | CMTC-0088–CMTC-0089 |
| Request for Production No. 20 | pp. 40–41 | CMTC-0089–CMTC-0090 |
| Request for Production No. 21 | p. 41     | CMTC-0090           |
| Request for Production No. 22 | pp. 41–42 | CMTC-0090–CMTC-0091 |
| Request for Production No. 26 | pp. 43–44 | CMTC-0092–CMTC-0093 |
| Request for Production No. 27 | p. 44     | CMTC-0093           |

**SECTION I — VERIFIED SUPPLEMENTAL ANSWERS TO INTERROGATORY NOS.  
1–18**

Daynamez restates below, as one complete set, its answers to Interrogatory Nos. 1 through 18. The answers are furnished by Zia Kamali on behalf of Daynamez and are verified by the declaration executed at the end of this document.

**INTERROGATORY NO. 1**

**Interrogatory:** *Identify all persons who participated in, approved, supervised, or had material responsibility for Daynamez's business relationship with SIC from October 1, 2023 through December 31, 2024, and state each person's title, employer, responsibilities, and role in relation to SIC.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 12, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0062. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

The only individual from Daynamez who participated in, approved, supervised, or had material responsibility for Daynamez's relationship and transactions with Southern International Co., Ltd. ("SIC") was:

Name: Zia Kamali

Title: Owner / Principal, Daynamez Group of Companies LLC

Employer: Daynamez Group of Companies LLC

Address: 4000 Legato Road, Suite 1100, Fairfax, Virginia 22033, USA

Email: kamali@daynamez.com

Telephone: +1 (571) 287-9964

**INTERROGATORY NO. 2**

**Interrogatory:** *Describe in detail Daynamez's position as to its business role with respect to the shipments at issue, including all facts supporting any contention that Daynamez acted only as a "sales agent" and not as an NVOCC, common carrier, or ocean transportation intermediary.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 12–14, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0062–CMTC-0064. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

Daynamez's role with respect to the shipments at issue was solely that of a sales agent and intermediary. Daynamez did not operate as a carrier, NVOCC, freight forwarder, or booking agent in its own right. The following facts, taken together, establish this position:

1. DAYNAMEZ NEVER ISSUED A HOUSE BILL OF LADING. The single most fundamental indicator of NVOCC status is the issuance of a House Bill of Lading (HBL) to a shipper. Daynamez never issued an HBL to SIC or to any other party in connection with the shipments at issue. SIC, as an experienced freight forwarder with years of industry experience, understood this. An entity that does not issue bills of lading is not operating as an NVOCC — it cannot be. SIC cannot plausibly claim it believed Daynamez was an NVOCC when it never received a single HBL from Daynamez across hundreds of shipments.

2. ZIA KAMALI EXPLICITLY STATED HE WAS NOT AN NVOCC IN DIRECT COMMUNICATIONS WITH SIC. During the course of the parties' business relationship, Zia Kamali communicated to SIC — including in phone conversations and email exchanges — that Daynamez was not an NVOCC and would not be issuing House Bills of Lading. These representations were made at the outset and throughout the relationship. SIC never objected, never sought an HBL, and continued to utilize Daynamez's services with full knowledge that Daynamez was acting as a sales agent and connector — not as a licensed carrier.

3. SIC'S OWN WRITTEN COMMUNICATIONS CONFIRM DAYNAMEZ WAS A PASS-THROUGH INTERMEDIARY. In a July 19, 2024 email, SIC's Director Nam Nguyen wrote to Daynamez: "To avoid this Foreigner Contractor Tax in the future, I honestly say that I just found the only way that Southern should pay the Ocean Freight in Vietnam. Just this way, the Foreigner Contractor Tax of Daynamez will be absolutely 0%." This statement — from SIC's own director — confirms that SIC understood Daynamez's tax exposure arose precisely because SIC was paying Daynamez as an intermediary and Daynamez was then paying service providers. SIC's proposed solution was to pay those service providers directly, cutting Daynamez out of the payment chain entirely. A carrier or NVOCC does not have this type of tax exposure structure, and SIC would have had no reason to propose this arrangement if it believed Daynamez was a carrier. See Bates Nos. DAYNAMEZ-000003 – DAYNAMEZ-000012.

4. DAYNAMEZ DID NOT CONTROL BOOKING, DOCUMENTATION, OR CARGO RELEASE. Daynamez's operational function was limited to: (a) soliciting competitive ocean freight rates from qualified service providers in Vietnam using its professional contacts; (b) connecting SIC with those service providers; and (c) notifying consignees of cargo arrivals. The actual booking of containers, preparation of documentation, issuance of manifests, and cargo release process were managed between SIC and the service providers directly. Daynamez had no authority over, and no involvement in, the cargo documentation or release chain.

5. DAYNAMEZ'S PAYMENTS TO SERVICE PROVIDERS REFLECT AGENCY, NOT CARRIER STATUS. Daynamez's Bank of America wire transfer records show \$3,538,013.62 paid to Vietnamese service providers on SIC's behalf (81 outgoing wires), as against \$4,137,845.23 received from SIC (37 incoming wires) – a retained Net-Net margin of \$599,831.61. These payments were made at SIC's direction — as confirmed by SIC's own WhatsApp messages in which Nam Nguyen instructed Daynamez to "prepare to pay" amounts for upcoming shipments while promising to reimburse Daynamez from SIC's manufacturer receipts. An entity advancing funds at a client's direction and awaiting reimbursement is acting as an agent, not as a principal carrier collecting freight on its own account. See Bates Nos. DAYNAMEZ-000001 – DAYNAMEZ-000002 (corrected Schedule of Funds, attached hereto as Exhibit C) and DAYNAMEZ-000013 – DAYNAMEZ-000014 (WhatsApp correspondence). A certified statement of these vendor payments — itemizing all 83 outgoing wire and fund transfers to freight and logistics service providers, totaling \$3,573,013.62, as reproduced from the Bank of America monthly statements for January through December 2024 — is attached hereto as Exhibit A, and an itemized schedule of each of these outgoing wires sent by Daynamez is attached hereto as Exhibit B, so that the underlying payment records are before the Presiding Officer.

6. DAYNAMEZ WAS SOLICITING RATES, NOT OPERATING AS A CARRIER. During the initial stages of the parties' relationship, Daynamez was expressly soliciting quotes and rates from various FMC-licensed service providers on SIC's behalf. This is the function of a sales agent or broker, not a carrier. Daynamez leveraged its professional network to obtain the most competitive pricing for SIC — a role fundamentally inconsistent with operating as a carrier or NVOCC in its own right.

Additional Evidence — Net-Net Profit-Split Email Chain (May 2024)

In May 2024, Nam Nguyen personally transmitted to Daynamez a Net-Net Input-Output Rate spreadsheet itemizing each shipment and computing Daynamez's 40% profit share and SIC's 60% profit share per container. Daynamez confirmed this 40/60 arrangement by email, explicitly describing itself as receiving a profit share on the spread between the Net-Net cost and SIC's selling rate. This profit-sharing structure is characteristic of a sales agent or referral intermediary, not an NVOCC that issues house bills of lading and assumes carrier obligations. See DAYNAMEZ-000086–000088 (Net-Net profit-split email chain); DAYNAMEZ-000089–000091 (Net-Net Input-Output Rate Spreadsheet, May–June 2024).

CONTRACT ARTICLE 1 — SIC ITSELF CALLED DAYNAMEZ A 'SALES AGENT'

The Agency Agreement No. SIC/DNM-011224 (DAYNAMEZ-000092–000097) that SIC executed states in Article 1: 'SIC and Party B mutually appoint each other as their sales and break bulk agent for Vietnam and respectively on a non-exclusive basis.' SIC cannot simultaneously sign a contract designating Daynamez as its 'sales agent' and then argue to the Commission that Daynamez was acting as an NVOCC. The contract itself, signed by SIC's

director, forecloses this position. Moreover, Article 6.15 of the same Agreement acknowledges that 'any money they collect on behalf of each other they collect purely as an agent and in a fiduciary capacity' — again directly refuting any carrier or NVOCC characterization. See DAYNAMEZ-000092–000097.

### **INTERROGATORY NO. 3**

**Interrogatory:** *Identify every website, marketing material, email communication, quote sheet, presentation, or other statement by which Daynamez described itself as an NVOCC, forwarder, carrier, provider of international shipping services, or similar transportation intermediary, and state the dates of use and the persons responsible for each.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 14–15, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0064–CMTC-0065. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

#### **ANSWER (restated and verified):**

Daynamez provides the following complete and amended answer identifying all responsive materials and statements:

#### **1. WEBSITE — ISOLATED DEVELOPER ERROR, NOT AN AUTHORIZED REPRESENTATION**

The only instance in which the term "NVOCC" appeared in any Daynamez public-facing material was in a single, isolated section of Daynamez's website, placed there by Daynamez's web developer without Daynamez's knowledge, authorization, or direction. Daynamez was not aware of this language at the time it was live. Upon becoming aware, Daynamez did not adopt, ratify, or rely upon the term. This was not a deliberate or authorized characterization of Daynamez's services or legal status.

#### **THE SPECIFIC CAUSE OF THE ERROR — OVERSEAS DEVELOPER, MISUNDERSTOOD TERMINOLOGY**

The error occurred in the following way: when Daynamez's principal, Zia Kamali, communicated with the web developer regarding the description of services, he referenced handling outbound cargo, and in that context used the term "NVOCC" loosely to describe the type of cargo movement being discussed. The web developer — who was not based in the United States and was located overseas — did not understand the legal and regulatory significance of the term "NVOCC" under U.S. maritime law. Without grasping the technical and legal distinction, the developer incorporated the word "NVOCC" directly into the website text. This was a misunderstanding of terminology by a non-U.S.-based developer, not an authorized or

deliberate representation by Daynamez. Evidence of this can be provided to the court upon request.

## 2. EMAIL COMMUNICATIONS — NO NVOCC LANGUAGE IN ANY CORRESPONDENCE

Daynamez's email communications with SIC and with all other customers and business partners — including all quote sheets, correspondence, and business proposals — contain no representation that Daynamez is an NVOCC, carrier, or freight forwarder. Daynamez's email signature, used consistently across all correspondence, identifies Daynamez as "Daynamez Group of Companies LLC" with its Fairfax, Virginia address and contact information, and contains no carrier designation, NVOCC license number, FMC registration, or any language holding Daynamez out as a transportation intermediary or carrier.

## 3. COMMUNICATIONS WITH ALL OTHER CUSTOMERS — CONSISTENT ABSENCE OF NVOCC LANGUAGE

In Daynamez's business dealings with customers and contacts in the United States and internationally, Daynamez has never described itself as an NVOCC to any party. Daynamez operates as a sales agent and logistics connector, and that is the capacity in which it has presented itself in every business relationship.

## 4. NO U.S. DOMESTIC OR INTERNATIONAL NVOCC HOLDING-OUT

To the extent the interrogatory asks whether Daynamez represented itself as an NVOCC in connection with shipments involving U.S. waters or U.S. ports — the answer is no. Daynamez has made no such representation to SIC, to any U.S.-based customer, to any carrier, or to any port or regulatory authority. The single website error described above is the full extent of any NVOCC-adjacent language attributable to Daynamez, and that language was neither authorized nor known to Daynamez at the time.

In summary, there are no responsive marketing materials, email communications, quote sheets, presentations, or statements — other than the inadvertent website error already admitted — by which Daynamez described itself as an NVOCC, freight forwarder, carrier, or international shipping company in its own right.

## INTERROGATORY NO. 4

**Interrogatory:** *State whether Daynamez at any time during the relevant period held any FMC license, registration, bond, insurance, surety, or other evidence of financial responsibility; if not, identify all persons who knew that fact while dealing with SIC.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 15, which SIC itself reproduced in its

Motion to Compel Appendix as Exhibit 6, at CMTC-0065. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

No. During the relevant period, Daynamez did not hold any FMC license, registration, bond, insurance, surety, or other evidence of financial responsibility required of an NVOCC or ocean freight forwarder under the Shipping Act or applicable FMC regulations.

All persons with knowledge of this status are:

1. Zia Kamali (Daynamez) — as owner and sole principal of Daynamez, Mr. Kamali was fully aware that Daynamez held no FMC license, bond, or surety, and communicated this to SIC during the parties' relationship.
2. SIC's representatives, including Nam Nguyen — SIC was informed by Daynamez that it did not hold an FMC bond or NVOCC registration. SIC, as an experienced participant in the international freight and logistics industry, engaged Daynamez with full knowledge and awareness of Daynamez's status as a sales agent and intermediary, not a licensed carrier or NVOCC.

**INTERROGATORY NO. 5**

**Interrogatory:** *Describe step-by-step the operational workflow for a typical shipment at issue, beginning with SIC's inquiry or booking request and ending with cargo release, identifying each entity and person involved at each step.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 15–16, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0065–CMTC-0066. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

The following is a complete step-by-step description of the operational workflow for a typical shipment at issue in this proceeding:

**STEP 1 — SIC IDENTIFIES A SHIPMENT NEED AND CONTACTS DAYNAMEZ.** SIC, through its representative Nam Nguyen, would contact Zia Kamali at Daynamez to request ocean freight services for a specific shipment or container. SIC would provide the basic shipment parameters — origin, destination, cargo type, and container requirements.

**STEP 2 — DAYNAMEZ SOLICITS RATES FROM ITS PERSONAL NETWORK OF SERVICE PROVIDERS.** Using his personal relationships and professional contacts developed over years in the logistics industry, Zia Kamali would reach out to qualified ocean freight service

providers in Vietnam to obtain competitive rates on SIC's behalf. These contacts were Daynamez's own personal connections — not intermediaries found through public channels — and the preferential rates obtained reflected the trust and relationships Daynamez had built with those providers. Service providers contacted included entities such as Kargosmart, Sophia, DGS Logistics Co. Ltd., Cargo Login LLC, Laser Cargo Services JSC, Ring International Transportation, and others.

**STEP 3 — DAYNAMEZ PRESENTS RATES TO SIC AND SIC SELECTS.** Daynamez would present the rates obtained to SIC. SIC would review and select the rate and provider it wished to proceed with. The decision on which provider to use and at what rate was SIC's.

**STEP 4 — DAYNAMEZ INTRODUCES SIC TO THE SERVICE PROVIDER.** Once SIC confirmed its selection, Daynamez would facilitate a direct introduction between SIC and the chosen service provider — providing SIC with the provider's contact information, phone numbers, and relevant personnel, and arranging the initial communication between the parties. From this point forward, SIC and the service provider communicated directly regarding the shipment details, booking confirmation, and documentation.

**STEP 5 — SERVICE PROVIDER HANDLES BOOKING, DOCUMENTATION, AND CARGO OPERATIONS.** The service provider — not Daynamez — was responsible for the actual booking of containers, preparation of shipping documentation, issuance of any bills of lading, coordination with the ocean carrier, and all cargo operations. Daynamez had no role in and no control over this stage. Daynamez did not issue House Bills of Lading or any other shipping documents in connection with any shipment.

**STEP 6 — SIC PAYS DAYNAMEZ; DAYNAMEZ PAYS SERVICE PROVIDERS.** SIC remitted freight payments to Daynamez. Daynamez, in turn, forwarded those funds to the relevant service providers. As confirmed by Daynamez's Bank of America wire transfer records, Daynamez made 81 separate wire and fund transfer payments totaling \$3,538,013.62 to service providers during the relevant period, against \$4,137,845.23 received from SIC across 37 incoming wires (a retained Net-Net margin of \$599,831.61). In some instances, Daynamez advanced payments to service providers at SIC's express direction and ahead of receiving full reimbursement from SIC — as documented in SIC's own WhatsApp communications in which Nam Nguyen instructed Daynamez to prepare to pay upcoming shipment costs while promising reimbursement. See Bates Nos. DAYNAMEZ-000001 – DAYNAMEZ-000002 (corrected Schedule of Funds, attached hereto as Exhibit C) and DAYNAMEZ-000013 – DAYNAMEZ-000014 (WhatsApp correspondence). See also Exhibits A and B hereto (certified Vendor Payments Statement and itemized schedule of outgoing wires, reproducing the underlying Bank of America wire transfer records for each vendor payment made by Daynamez).

**STEP 7 — DAYNAMEZ PROVIDES ARRIVAL NOTICE TO CONSIGNEE.** Upon receipt of information that a shipment had arrived or was arriving at its destination port, Daynamez would contact the consignee directly to advise them of the arrival of their cargo. This notification

function was Daynamez's primary and limited operational responsibility at the back end of each shipment. Daynamez had no role in cargo release, customs clearance, or any other post-arrival documentation process.

In summary, Daynamez's role began with rate solicitation using personal connections and ended with arrival notification. All booking, documentation, cargo operations, and release functions were handled by SIC and the service providers directly.

#### **INTERROGATORY NO. 6**

**Interrogatory:** *Describe in detail every “Net/Net” pricing arrangement between Daynamez and SIC, including how rates were quoted, how profits, margins, or commissions were calculated, how any split was to occur, and who approved those arrangements.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 16–18, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0066–CMTC-0067. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

#### **ANSWER (restated and verified):**

The Net/Net pricing arrangement between Daynamez and SIC was straightforward, consistent, and static throughout the entirety of the parties' relationship. It was never renegotiated, restructured, or varied on a per-shipment basis. The arrangement operated as follows:

**STRUCTURE.** SIC paid Daynamez an agreed ocean freight rate per container. Daynamez, in turn, paid the service providers the actual cost of the ocean freight. The difference between what SIC paid Daynamez and what Daynamez paid the service providers represented Daynamez's commission — its compensation for sourcing the rate, leveraging its personal network, and connecting SIC with the provider. This is the classic Net/Net structure of a sales agent or broker: the agent passes through the underlying cost and retains a margin. Daynamez did not mark up freight as a carrier setting its own tariff — it earned a commission on the spread between the rate quoted to SIC and the rate paid to the service provider.

**THE RATE REMAINED STATIC.** Because Daynamez was operating as a sales agent and not as an NVOCC or carrier, the Net/Net structure was kept static and was not repriced or renegotiated for individual shipments. A carrier operating under a tariff would publish and update rates. Daynamez did not. The consistent, unchanging nature of the Net/Net arrangement is itself evidence of a sales agency relationship, not a carrier relationship.

**DOCUMENTED EVIDENCE OF THE ARRANGEMENT.** The Net/Net structure is confirmed by SIC's own written communications. In an October 11, 2024 email, SIC's representative Nam Nguyen acknowledged the total freight amounts paid to Daynamez for shipments via Sophia (\$980,300) and Kargosmart (\$963,100). Consistent with its sales-agent role, Daynamez retained

only its agreed commission on the spread between SIC's selling rate and the cost paid to the service providers; Daynamez makes no claim that SIC owes it any freight balance. See Bates Nos. DAYNAMEZ-000015 – DAYNAMEZ-000019.

**NO SEPARATE MARGIN OR PROFIT CALCULATION PER SHIPMENT.** There was no shipment-by-shipment profit, margin, or commission calculation — the Net/Net arrangement was agreed at the outset and applied uniformly. Daynamez does not have itemized per-shipment profit records because the arrangement was not structured that way. The email correspondence produced at Bates Nos. DAYNAMEZ-000015 – DAYNAMEZ-000019 reflects the total freight amounts paid and outstanding, which is the complete financial picture of the Net/Net arrangement as between Daynamez and SIC.

#### May 2024 Shipment-Level Net-Net Calculation

In May 2024, SIC's representative Nam Nguyen provided Daynamez with a route-by-route profit calculation spreadsheet (DAYNAMEZ-000089–000091) covering shipments on routes including HCM–NYC, HCM–LAX, HCM–SAV, HPH–NYC, HCM–Miami, HCM–HOU, and HCM–NYC. The spreadsheet reflects Daynamez's input (cost) rates per container, SIC's selling rates per container, and the computed profit split — initially 50/50 for certain routes, then shifting to 40% Daynamez / 60% SIC as confirmed in the accompanying email chain (DAYNAMEZ-000086–000088). The Net-Net cost rates (Daynamez's input rates) remained static and were passed through at cost. Daynamez's revenue was limited to its agreed profit-share percentage of the spread. This structure is entirely inconsistent with that of an NVOCC billing a shipper for ocean freight.

#### **INTERROGATORY NO. 7**

**Interrogatory:** *Identify all entities that Daynamez contends performed booking, bill of lading issuance, manifesting, arrival notice, freight collection, release coordination, or detention-related functions for the shipments at issue, and describe Daynamez's relationship with each.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 18–19, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0068–CMTC-0069. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### **ANSWER (restated and verified):**

The following is a complete entity-by-entity and function-by-function identification of all entities that performed booking, bill of lading issuance, manifesting, arrival notice, freight collection, release coordination, and related functions in connection with the shipments at issue, together with Daynamez's relationship to each:

1. KARGOSMART (Agent: Cargo Login LLC)

Role: KargoSmart served as a service provider for ocean freight bookings. KargoSmart's U.S.-based agent was Cargo Login LLC. Functions performed by KargoSmart / Cargo Login included: booking of containers, coordination with the ocean carrier, issuance of bills of lading and manifests, freight collection, and release coordination.

Daynamez's Relationship: Daynamez introduced KargoSmart to SIC using Daynamez's personal professional contacts. Daynamez provided SIC with KargoSmart's and Cargo Login's contact information and facilitated the initial introduction. All subsequent operational communication and function was conducted directly between SIC and KargoSmart / Cargo Login. Daynamez was not a party to those operational communications.

## 2. DGS LOGISTICS CO., LTD. (Agent: ICT International)

Role: DGS Logistics Co., Ltd. served as a service provider for ocean freight bookings in Vietnam. DGS's associated agent was ICT International. Functions performed included: booking of containers, bill of lading issuance, manifesting, freight coordination, and related cargo documentation functions.

Daynamez's Relationship: Daynamez introduced DGS Logistics to SIC through its personal network. Daynamez provided the relevant contact information and arranged the initial communication. All booking, documentation, and cargo functions were performed directly between SIC and DGS / ICT International. Daynamez had no operational role in those functions.

## 3. PACIFIC LOGISTICS AND TRADING (Vietnam)

Role: Pacific Logistics and Trading, based in Vietnam, served as a service provider performing ocean freight booking, container coordination, and related logistics functions in connection with certain shipments.

Daynamez's Relationship: Daynamez introduced Pacific Logistics to SIC through its personal contacts in the Vietnamese logistics industry. Following the introduction, all operational functions were carried out directly between SIC and Pacific Logistics. Daynamez's role was limited to facilitating the connection.

## 4. DAYNAMEZ GROUP OF COMPANIES LLC

Role: Arrival notice only. Upon being informed that cargo had arrived at its destination, Daynamez contacted the relevant consignee to advise them of the arrival of their shipment or container. This was Daynamez's sole operational function in connection with the shipments at issue. Daynamez did not perform booking, bill of lading issuance, manifesting, freight collection, release coordination, or detention-related functions in connection with any shipment.

## 5. SIC (SOUTHERN INTERNATIONAL CO., LTD.)

Role: SIC, as the party that engaged Daynamez's services and directed the shipments, was responsible for coordinating with each service provider on the operational details of each

shipment, including booking confirmation, cargo documentation, release coordination, and payment of freight charges to service providers through Daynamez. SIC communicated directly with KargoSmart / Cargo Login, DGS / ICT International, and Pacific Logistics regarding all shipment-specific operational matters.

#### **INTERROGATORY NO. 8**

**Interrogatory:** *For each of the following entities—Super Cargo Service Co., Ltd.; Kargosmart Global Vietnam Co., Ltd.; Kargosmart Global USA Inc.; Cargo Login LLC; Mahasagar Forwarders Pvt Ltd; Ring International Transport JSC; and Windlogs Co., Ltd.—state the nature of Daynamez's relationship, including ownership, referral, agency, subcontracting, payment, operational instructions, and any authority to bind or act for Daynamez.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 19–20, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0069–CMTC-0070. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### **ANSWER (restated and verified):**

Daynamez's relationship with each of the entities identified in this interrogatory was the same in kind: a personal, working referral relationship built through Daynamez's professional network in the logistics and freight industry. In every case, the following is true and applies uniformly:

— Daynamez had no ownership stake, equity interest, or financial interest in any of these entities.

— Daynamez had no formal written contract, agency agreement, or subcontracting agreement with any of these entities.

— Daynamez had no authority to bind any of these entities, and none of them had authority to bind or act on behalf of Daynamez.

— Daynamez did not issue operational instructions to any of these entities regarding specific shipments. Once introduced to SIC, these entities communicated and coordinated directly with SIC.

— Daynamez's sole role was to refer and introduce — using personal professional relationships developed over time — service providers to SIC, so that SIC could obtain competitive ocean freight rates and services.

Entity-by-entity response:

SUPER CARGO SERVICE CO., LTD.: Personal working relationship. Daynamez referred SIC to Super Cargo based on its professional contacts. No ownership, contract, or authority relationship. All operational functions performed directly between Super Cargo and SIC.

KARGOSMART GLOBAL VIETNAM CO., LTD. / KARGOSMART GLOBAL USA INC.: Personal working relationship. Daynamez introduced SIC to KargoSmart (with Cargo Login LLC as its U.S. agent) through its professional network. No ownership stake, no formal contract, no authority to bind. All booking, documentation, and operational functions performed directly between KargoSmart / Cargo Login and SIC.

CARGO LOGIN LLC: Personal working relationship as U.S. agent for KargoSmart. Same as above. Daynamez had no ownership, contract, or operational authority over Cargo Login.

MAHASAGAR FORWARDING: Personal working relationship through Daynamez's professional network. No ownership, contract, or authority relationship. All functions performed directly between Mahasagar and SIC following Daynamez's introduction.

RING INTERNATIONAL TRANSPORTATION: Personal working relationship. Daynamez referred SIC to Ring International through its professional contacts. No ownership, contract, or authority relationship. All operational functions conducted directly between Ring and SIC.

WINDLOGS (AND ANY OTHER ENTITY IDENTIFIED IN THE INTERROGATORY): Same as above. Each entity with which Daynamez had contact was known to Daynamez through its personal professional network in the logistics industry. Daynamez's role was referral and introduction only. No ownership stake, no contract, no authority to bind, and no operational involvement following the introduction.

In summary, Daynamez functioned as a sales agent that leveraged personal relationships to connect SIC with qualified service providers. These were relationship-based referrals, not contractual or ownership arrangements. The absence of any formal agreements between Daynamez and these entities is entirely consistent with Daynamez's role as a sales agent and intermediary, not a carrier or NVOCC.

## **INTERROGATORY NO. 9**

**Interrogatory:** *Identify every bank account, payment platform, accounting ledger, bookkeeping system, or other financial repository through which Daynamez received funds from SIC relating to the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 20, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0070. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

Daynamez withdraws its prior objection and provides the following complete response.

During the entirety of Daynamez's relationship with SIC, Daynamez utilized a single Bank of America business checking account ending in 6476 as its payment platform. All funds received from SIC were deposited into this account, and all payments made by Daynamez to service providers in connection with SIC shipments were made from this same account. Daynamez did not use any other bank account, payment platform, escrow account, or financial repository to receive or disburse SIC-related funds.

The complete wire and fund transfer records for this Bank of America account — reflecting 81 transactions totaling \$3,538,013.62 in outgoing payments to service providers (and \$4,137,845.23 received from SIC across 37 incoming wires) during the relevant period — have been produced in corrected and comprehensive form at Bates Nos. DAYNAMEZ-000001 – DAYNAMEZ-000002 (attached hereto as Exhibit C) and constitute Daynamez's full financial record responsive to this interrogatory. The certified Vendor Payments Statement attached hereto as Exhibit A reproduces, directly from the Bank of America monthly statements for this account, each outgoing wire and fund transfer to the freight and logistics service providers. An itemized schedule of each outgoing wire sent by Daynamez from this account — identifying the statement period, transaction date, beneficiary vendor, wire type, transaction ID, service reference, and amount — is attached hereto as Exhibit B. The \$599,831.61 difference between funds received and funds disbursed is Daynamez's Net-Net margin (profit), not misappropriated funds.

**INTERROGATORY NO. 10**

**Interrogatory:** *For each payment received from SIC relating to the shipments at issue, state: (a) the date received; (b) amount; (c) currency; (d) sender; (e) receiving account; (f) intended shipment(s) or container(s); and (g) the ultimate disposition of the funds.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 20–21, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0070–CMTC-0071. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

Daynamez withdraws its prior objection and provides the following response.

**PAYMENTS RECEIVED FROM SIC — SIC'S OWN OBLIGATION TO PRODUCE.** To the extent this interrogatory seeks a transaction-level accounting of every payment SIC sent to Daynamez, that information is equally — and more directly — within SIC's own possession, custody, and control. SIC issued each payment and holds its own wire transfer records, bank statements, and remittance confirmations. Daynamez respectfully submits that the burden of

itemizing payments SIC made lies with SIC, and SIC should be directed to produce its own payment records in response to this inquiry.

**DAYNAMEZ'S PRODUCTION — DISPOSITION OF FUNDS.** To the extent this interrogatory asks what Daynamez did with the funds it received from SIC, Daynamez has fully responded. Daynamez's Bank of America account records (Bates Nos. DAYNAMEZ-000001 – DAYNAMEZ-000002) demonstrate that amounts received from SIC were forwarded to the service providers — KargoSmart / Cargo Login LLC, DGS Logistics Co. Ltd. / ICT International, Pacific Logistics and Trading, and others — during the same period in which those funds were received. The records show 81 wire and fund transfer transactions totaling \$3,538,013.62 in outgoing payments – as against \$4,137,845.23 received from SIC across 37 incoming wires – with transaction dates, amounts, recipient names, reference numbers, and TRNs. The \$599,831.61 difference reflects Daynamez's Net-Net profit margin, not any misappropriation, and is independently verifiable with Bank of America, N.A. via the listed TRNs. This constitutes the complete record of Daynamez's disposition of SIC-related funds. See the corrected Schedule of Funds at DAYNAMEZ-000001 – DAYNAMEZ-000002, attached hereto as Exhibit C.

**CONTAINER AND SHIPMENT-LEVEL LINKAGE — NOT DAYNAMEZ'S OPERATIONAL FUNCTION.** To the extent this interrogatory seeks a shipment-by-shipment or container-by-container linkage between payments and specific cargo, Daynamez was not involved in those operational functions. Daynamez did not manage bookings, issue bills of lading, access port terminals, coordinate cargo release, or maintain shipment-level records. Those functions were performed directly by SIC and the service providers Daynamez introduced to SIC — specifically KargoSmart, DGS Logistics, and Pacific Logistics, each of which had direct access to port terminals, release systems, and House Bills of Lading. Daynamez's role was to transmit funds to those service providers as directed by SIC. For container-level or shipment-level payment detail, Daynamez respectfully directs SIC to contact KargoSmart, DGS Logistics, and the other service providers directly, as those entities are the appropriate source of that information.

## **INTERROGATORY NO. 11**

**Interrogatory:** *Identify all payments Daynamez contends it made to any underlying carrier, NVOCC, booking partner, terminal, or service provider for the shipments at issue, including the date, amount, payee, shipment linkage, and supporting document for each such payment.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 21–22, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0071–CMTC-0072. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

Daynamez supplements its prior answer as follows. Throughout the course of the parties' relationship, Daynamez received funds from SIC via its Bank of America account ending in 6476 (the sole Daynamez payment account used in connection with the SIC relationship). Upon receipt, Daynamez disbursed those funds to the following service providers as directed by the shipping and booking arrangements introduced through Daynamez:

1. KargoSmart (acting as agent for CargoLogin)

Funds were remitted to KargoSmart in connection with ocean freight bookings on routes introduced by Daynamez. KargoSmart / CargoLogin served as the primary ocean carrier booking agent for the majority of the shipments at issue. Daynamez's bank records reflect transfers to this entity corresponding to SIC shipment cycles. See DAYNAMEZ-000001–000002.

2. DGS (acting as agent for ICT International)

A subset of payments were remitted to DGS / ICT International in connection with shipments routed through that booking channel. See DAYNAMEZ-000001–000002.

3. Pacific Logistics (Vietnam)

Additional disbursements were made to Pacific Logistics in connection with Vietnam-origin logistics coordination for shipments introduced through Daynamez's referral relationship.

**Payment Flow and Supporting Documentation**

Daynamez's bank records (DAYNAMEZ-000001–000002) reflect the outgoing wire transfers and ACH payments corresponding to each of the above payees. The amounts disbursed by Daynamez to service providers match the Net-Net rates and balances set out in SIC's own payment acknowledgment (DAYNAMEZ-000015–000019). The Net-Net rate was static and passed through at cost; Daynamez did not retain a spread above the Net-Net rate on carrier payments.

To the extent SIC requests a shipment-by-shipment linkage of each payment to a specific MBL or booking number, Daynamez notes that SIC — as the party that directly contracted with and communicated booking confirmations to the service providers following the introductions made by Daynamez — is equally or better positioned to cross-reference the shipment identifiers in its own records against the transfer dates and amounts shown in Daynamez's bank production. Daynamez will supplement this response further upon receipt of the corresponding SIC booking records in discovery.

Supporting Documents: DAYNAMEZ-000001–000002 (corrected, comprehensive Schedule of Funds, BofA acct. 6476); DAYNAMEZ-000015–000019 (Net-Net Calculation and SIC Payment Acknowledgment).

## INTERROGATORY NO. 12

**Interrogatory:** *Describe all facts known to Daynamez regarding any hold, lien, detention, refusal of release, demand for additional payment, or other release-related impediment affecting any shipment or container at issue, including when Daynamez first learned of each event and what Daynamez did in response.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 22–23, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0072–CMTC-0073. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

### **ANSWER (restated and verified):**

Daynamez provides the following complete response identifying each hold, lien, detention, and release impediment and its cause. Every such event was caused by either (a) SIC's explicit written instruction to Daynamez to withhold arrival notices, or (b) SIC's failure to make required freight payments. Daynamez did not independently impose any hold, lien, or detention on any container at any time.

CATEGORY 1 — SIC'S EXPLICIT WRITTEN ORDER TO HOLD (June 6, 2024). On June 6, 2024 at 2:51 AM, SIC's Director Nam Nguyen sent Daynamez a written email instruction (copying rosa@southern.com.vn and sarah@southern.com.vn) ordering Daynamez not to release Telex MBL for the following three specific shipments, identified in SIC's own yellow-marked spreadsheet:

- MBL No. 2302379151 — HCM-LAX, 3×40HC — Consignee: Viet Uni Logistics USA, Inc. (Tel: 817-773-0297)
- MBL No. 2302379361 — HCM-LAX, 1×40HC — Consignee: Viet Uni Logistics USA, Inc.
- MBL No. 2302379280 — HCM-LAX, 1×40HC — Consignee: Win Art Logistics, Los Angeles, USA (Tel: 516-256-7575)

Nam Nguyen's exact instruction read: "Yellow is pending/need to hold shipments, not release TLX MBL... do not release those shipment OK." Daynamez complied with this instruction. The resulting delay in cargo release, any detention or demurrage charges, and any disputes with the consignees and carriers arising from these holds are entirely attributable to SIC's own written direction. Daynamez was acting on SIC's explicit order — not on its own initiative. See Bates Nos. DAYNAMEZ-000022 – DAYNAMEZ-000023 (SIC hold order email and Daynamez's summary) and DAYNAMEZ-000024 – DAYNAMEZ-000050 (yellow-marked shipment spreadsheet, June 6, 2024) and DAYNAMEZ-000051 – DAYNAMEZ-000080 (yellow-marked shipment spreadsheet, June 2024).

CATEGORY 2 — HOLDS CAUSED BY SIC'S FAILURE TO PAY. All other holds, detention charges, and release impediments affecting shipments at issue were caused by SIC's failure to fund the freight in full and on time. Because SIC did not provide the funds due under the Net/Net arrangement, Daynamez could not fully discharge its payment obligations to the service providers. Those providers — KargoSmart, DGS Logistics, and others — withheld release and imposed detention charges as a result of non-payment. The chain of causation runs directly from SIC's non-payment to every hold and detention charge that followed.

OOCL DETENTION — ONGOING HARM. As a consequence of SIC's non-payment, Daynamez is currently subject to \$107,972.00 in overdue detention and demurrage charges assessed by OOCL (USA) Inc. for container FBLU0192020, on which Daynamez is not the consignee or booking party. These charges, and the resulting damage to Daynamez's relationship and standing with OOCL and other ocean carriers, are entirely SIC's responsibility. See Bates Nos. DAYNAMEZ-000020 – DAYNAMEZ-000021.

In summary: SIC ordered holds on specific containers in writing, SIC failed to pay causing further holds, and Daynamez is now facing carrier debt and reputational harm as a direct result of SIC's own conduct.

### **INTERROGATORY NO. 13**

**Interrogatory:** *State in detail all facts supporting each affirmative defense asserted by Daynamez in this proceeding.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 23–25, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0073–CMTC-0075. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

### **ANSWER (restated and verified):**

#### **THRESHOLD DEFENSE — ARTICLE 10: MANDATORY VIAC ARBITRATION IN VIETNAM**

As a threshold matter, this proceeding is barred by the mandatory arbitration clause in Article 10 of Agency Agreement No. SIC/DNM-011224 (DAYNAMEZ-000092–000097). Article 10 provides that ALL disputes, controversies, or differences arising between the parties out of or in connection with the Agreement or its breach 'shall be finally settled by the Vietnam International Arbitration Centre at the Vietnam Chamber of Commerce and Industry.' The parties' entire relationship — including every shipment, every payment, and every alleged breach at issue in this proceeding — was governed exclusively by this Agreement. SIC was required to bring any dispute to VIAC in Vietnam, not to the Federal Maritime Commission. Daynamez respectfully submits that the Commission should dismiss or stay this proceeding and direct SIC to pursue its

claims through the contractually agreed VIAC forum. See DAYNAMEZ-000092–000097, Page 5.

#### ARTICLE 5.3 BREACH — SIC CAUSED ALL OPERATIONAL DAMAGE

Article 5.3 of the Agreement expressly prohibits either party from disclosing information about their co-operation to third parties. SIC violated this clause by meeting with and facilitating KargoSmart/SiperKargo's access to Daynamez's proprietary rate and volume information. This breach severed Daynamez's principal credit line, destroyed its business relationships, and directly caused the cargo holds, detention charges, and operational failures that SIC now attributes to Daynamez. Daynamez did not cause this damage — SIC's Article 5.3 breach did. See DAYNAMEZ-000092–000097, Page 3; DAYNAMEZ-000081–000085.

#### ARTICLE 8 — SIC IS CONTRACTUALLY OBLIGATED TO INDEMNIFY DAYNAMEZ

Article 8.1 requires SIC to indemnify and hold Daynamez harmless for any loss arising from SIC's acts or omissions. SIC's nonpayment, its direct dealings with service providers, its written hold orders, and its false publications each constitute acts or omissions of SIC. The \$107,972 OOCL debt (DAYNAMEZ-000020–000021) and all reputational damages are indemnifiable under Article 8.1. See DAYNAMEZ-000092–000097, Page 4.

Daynamez Group of Companies LLC ("Daynamez") identifies the following affirmative defenses and supporting evidence in response to Interrogatory No. 13.

#### DEFENSE 1 — DAYNAMEZ ACTED SOLELY AS A SALES AGENT, NOT AS AN NVOCC OR CARRIER

At all relevant times, Daynamez functioned exclusively as a sales agent and referral intermediary. Daynamez never issued a House Bill of Lading, never held an FMC bond or OTI license, and explicitly communicated to Southern International Co., Ltd. ("SIC") and its representative, Mr. Nam Nguyen, that Daynamez was not an NVOCC. The "Dear Nam" email correspondence produced herewith confirms that SIC was aware of, and indeed proposed, payment structures premised on Daynamez's intermediary role — including SIC's own suggestion to route payments directly through Vietnam to avoid tax, acknowledging that Daynamez was merely passing funds through. See DAYNAMEZ-000003–000012.

#### DEFENSE 2 — SIC'S UNILATERAL BREACH OF CONTRACT: DIRECT PAYMENT TO SERVICE PROVIDERS

SIC's Verified Complaint alleges that SIC paid \$149,990.00 purportedly on Daynamez's behalf to service providers. Daynamez affirmatively denies that this payment was made on its behalf. Under the established course of dealing between the parties, SIC would remit funds to Daynamez, and Daynamez would then disburse those funds to freight forwarders and service providers (KargoSmart/CargoLogin, DGS/ICT International, Pacific Logistics) as directed. At the point in question, SIC unilaterally deviated from this arrangement and made direct payment

to the service providers without Daynamez's knowledge or authorization. The service providers did not release the shipments. SIC now seeks to hold Daynamez liable for losses arising from SIC's own unilateral and unauthorized direct dealings — dealings that circumvented the agreed contractual arrangement and removed Daynamez from the transaction entirely. Daynamez's bank records confirm that no corresponding funds were received from SIC for this transaction. See DAYNAMEZ-000001–000002.

#### DEFENSE 3 — DAYNAMEZ RETAINED ONLY ITS EARNED NET-NET PROFIT AND MAKES NO MONETARY CLAIM AGAINST SIC

Daynamez makes no claim that SIC owes it freight money. Daynamez operated as a sales agent on a static Net-Net pass-through basis: it remitted the freight cost to the service providers and retained only its agreed commission. Over the course of the parties' relationship, Daynamez received \$4,137,845.23 from SIC and paid \$3,538,013.62 to the service providers, retaining \$599,831.61 as its earned Net-Net profit — the only sum it kept, and a small fraction of the approximately \$2.6 million SIC has falsely sworn was misappropriated. This confirms Daynamez took nothing beyond its lawful commission. See DAYNAMEZ-000001–000002 (Schedule of Funds); DAYNAMEZ-000015–000019; DAYNAMEZ-000086–000091 (40/60 profit-split).

#### DEFENSE 4 — OOCL DEBT CAUSED BY SIC'S NONPAYMENT (\$107,972.00)

As a direct and proximate result of SIC's failure to pay Daynamez, Daynamez was unable to remit amounts due to OOCL. OOCL has since billed Daynamez \$107,972.00 in outstanding charges related to container FBLU0192020. Critically, the House Bill of Lading for this shipment (HBL VNNYC2404027) expressly identifies parties other than Daynamez as the consignee and booking party. Daynamez is not the consignee, is not the booking party, and did not contract directly with OOCL in the capacity of a principal. Daynamez's exposure to OOCL arose solely because SIC routed communications and arrival notice obligations through Daynamez as an intermediary and then failed to pay. See DAYNAMEZ-000020–000021.

#### DEFENSE 5 — SIC EXPRESSLY ORDERED HOLDS ON SHIPMENTS, THEN BLAMED DAYNAMEZ

On or about June 6, 2024, Mr. Nam Nguyen, on behalf of SIC, transmitted a written instruction to Daynamez directing that arrival notices not be issued for containers under MBLs 2302379151, 2302379361, and 2302379280, covering shipments to consignees Viet Uni Logistics and Win Art Logistics. These explicit written instructions from SIC are the direct cause of the holds, liens, and detentions that SIC now attributes to Daynamez. For any other containers where holds or detentions arose, the cause was SIC's own failure to make timely payment to the service providers Daynamez had introduced. Daynamez did not unilaterally hold any container; every hold either was ordered in writing by SIC or flowed from SIC's nonpayment. See DAYNAMEZ-000022–000023; DAYNAMEZ-000024–000080.

## DEFENSE 6 — SIC'S FALSE AND DEFAMATORY STATEMENTS CAUSED INDEPENDENT REPUTATIONAL HARM

SIC and/or parties affiliated with SIC published false statements on the internet characterizing Daynamez as a fraudulent or scam enterprise. These publications were made after the payment dispute arose and appear calculated to shift blame to Daynamez and damage its standing with carriers, logistics counterparts, and prospective clients. The reputational harm caused by these false statements — including loss of Daynamez's established relationships with OOCL and other liner partners, and the chilling effect on prospective business — constitutes independent, compensable damage for which SIC bears responsibility. See DAYNAMEZ-000013–000014 (SIC's own communications confirming Daynamez's legitimate role as payment conduit and intermediary).

## RESERVATION OF RIGHTS

Daynamez reserves the right to identify additional affirmative defenses as discovery progresses and additional evidence becomes available. The foregoing defenses are based on information presently known to Daynamez and are not intended to be exhaustive.

## DEFENSE 7 — SIC's WRITTEN BAD-FAITH RESPONSE: 'TAKE A LOAN'

After Daynamez communicated the full scope of the damage caused by SIC's unauthorized direct dealings with KargoSmart and SiperKargo (two entities that are, in fact, a single company), SIC's representative Nam Nguyen responded in writing on approximately October 15, 2024, instructing Daynamez to 'try your best to owe and loan the money from your relationships to pay these shipments,' and declaring 'this is DAYNAMEZ RESPONSIBILITIES, NOT SOUTHERN.' Critically, Nam simultaneously admitted in the same correspondence: 'Southern has already done our responsibilities that Southern already paid those money to Daynamez as the clause in our contract' — a direct admission that SIC's contractual payment obligation ran to Daynamez, and that SIC considers its obligation discharged once it paid Daynamez (not the service providers directly). This admission is fatal to any claim that Daynamez held an independent carrier or NVOCC obligation to SIC; it confirms the pass-through agency structure of the relationship. See DAYNAMEZ-000081–000085.

## DEFENSE 8 — KARGOSMART / SIPERKARGO DIRECTLY CAUSED THE OPERATIONAL BREAKDOWN

As detailed in Daynamez's October 2024 letter to Nam (DAYNAMEZ-000081–000085), KargoSmart and SiperKargo (a single entity) unilaterally approached SIC's manufacturer, obtained Daynamez's proprietary rate and volume information without authorization, and published false statements about Daynamez in the press. This conduct: (a) severed Daynamez's principal relationship and credit line; (b) caused the cargo holds and release failures that SIC now attributes to Daynamez; and (c) independently constitutes tortious interference with Daynamez's business relationships. The fault for the operational breakdown lies with

KargoSmart/SiperKargo and, to the extent SIC facilitated or authorized that direct meeting, with SIC itself. Daynamez had zero balance with DGS and successfully moved 85+ containers with other partners before the KargoSmart breach — confirming that Daynamez's operations were competent and the disruption was externally caused.

#### DEFENSE 9 — SIC'S SWORN ALLEGATION THAT DAYNAMEZ MISAPPROPRIATED APPROXIMATELY \$2.6 MILLION IS FALSE AND IS REFUTED BY DAYNAMEZ'S BANK RECORDS

SIC has alleged, under oath in its Verified Complaint, that Daynamez misappropriated approximately \$2.6 million of SIC's funds. That sworn allegation is false and is conclusively refuted by Daynamez's own Bank of America records. Daynamez's complete, corrected Schedule of Funds (DAYNAMEZ-000001–000002, attached hereto as Exhibit C), drawn directly from Bank of America account ending 6476, establishes that Daynamez received \$4,137,845.23 from SIC across 37 incoming wires and disbursed \$3,538,013.62 to the service providers across 81 outgoing wires on SIC's shipments. The only sum Daynamez retained was \$599,831.61 — its contractually-agreed Net-Net margin (profit) under the parties' 40/60 arrangement — a small fraction of the \$2.6 million SIC swore was misappropriated, and a sum Daynamez was entitled to keep as its earned commission. No \$2.6 million, or any sum approaching it, was ever diverted, withheld, or misappropriated. Every one of the 118 transactions is independently and objectively verifiable: each bears a Bank of America Transaction ID (TRN), and Daynamez expressly consents to the Presiding Officer confirming every figure directly with Bank of America, N.A. A party that received roughly \$4.1 million and paid out roughly \$3.5 million of it to the very service providers SIC identifies — keeping only its agreed margin — has not misappropriated anything. SIC's sworn misappropriation allegation is not supported by a single bank record and is squarely contradicted by the documentary evidence SIC itself can verify. See DAYNAMEZ-000001–000002 (corrected Schedule of Funds); DAYNAMEZ-000001–000002 (bank records); DAYNAMEZ-000015–000019 (Net-Net calculation); DAYNAMEZ-000086–000091 (40/60 profit-split documentation).

#### INTERROGATORY NO. 14

**Interrogatory:** *State in detail all facts supporting Daynamez's contention that SIC, rather than Daynamez, owes money in connection with the parties' relationship or the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 25–26, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0075–CMTC-0076. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**ANSWER (restated and verified):**

Daynamez supplements its prior answer to clarify that it does not contend SIC owes it any freight balance; its prior Count II claim has been dismissed and Daynamez presses no monetary demand for unpaid freight. Daynamez identifies the following facts regarding the parties' financial dealings and the harm SIC caused:

**1. Daynamez Retained Only Its Earned Net-Net Profit — \$599,831.61**

Throughout the parties' relationship, Daynamez received funds from SIC and remitted the freight cost to the service providers (KargoSmart/CargoLogin, DGS/ICT International, Pacific Logistics) on a static Net-Net basis. Daynamez's bank records show it received \$4,137,845.23 from SIC and paid \$3,538,013.62 to the service providers, retaining only \$599,831.61 as its earned Net-Net commission (profit). Daynamez makes no claim that SIC owes it freight money, and it did not misappropriate the approximately \$2.6 million SIC has falsely alleged under oath. See DAYNAMEZ-000001–000002; DAYNAMEZ-000015–000019.

**2. OOCL Charges Incurred Due to SIC's Nonpayment — \$107,972.00**

As a direct and proximate result of SIC's failure to remit funds owed to Daynamez, Daynamez was unable to settle amounts due to OOCL. OOCL has issued a statement of accounts billing Daynamez \$107,972.00 in outstanding freight and related charges. Daynamez contends this liability was caused entirely by SIC's breach and that SIC is obligated to indemnify or reimburse Daynamez for these charges. See DAYNAMEZ-000020–000021.

**3. Reputational and Business Harm**

SIC and/or affiliated parties published false statements online characterizing Daynamez as a fraudulent enterprise. These publications damaged Daynamez's established relationships with OOCL and other logistics partners, and deterred prospective customers. Daynamez contends SIC is liable for the resulting business losses. See DAYNAMEZ-000013–000014.

Supporting Documents: DAYNAMEZ-000001–000002 (Bank Records); DAYNAMEZ-000015–000019 (Net-Net Calculation & SIC Acknowledgment); DAYNAMEZ-000020–000021 (OOCL Statement & HBL); DAYNAMEZ-000013–000014 (WhatsApp Correspondence).

**4. Net-Net Profit-Split Spreadsheet — Route-Level Calculation**

The Net-Net Input-Output Rate Spreadsheet produced at DAYNAMEZ-000089–000091 provides a route-by-route breakdown of the profit split between Daynamez (40%) and SIC (60%) for shipments in May–June 2024. This document, prepared and transmitted by SIC's own representative Nam Nguyen, independently confirms both the Net-Net cost structure and SIC's acknowledgment of the profit-share arrangement. The amounts reflected in this spreadsheet confirm Daynamez's profit-share (commission) under the Net-Net arrangement. See also

DAYNAMEZ-000086–000088 (email confirming the 40/60 arrangement and identifying total profit of \$17,510 for the May 5–June 4, 2024 cycle alone).

#### ARTICLE 8 — CONTRACTUAL INDEMNITY OWED BY SIC

Separately, SIC is obligated to indemnify Daynamez under Article 8.1 of the Agency Agreement for the losses SIC's own conduct caused (including the OOCL debt): 'SIC agrees to indemnify and hold party B harmless against any loss, damage or liability which may incur through any act or omission of SIC.' SIC's acts — including nonpayment, its unauthorized direct dealings with service providers, its written hold orders (DAYNAMEZ-000022–000023), and its false online publications — are all SIC's own acts or omissions, and SIC is contractually obligated to make Daynamez whole for all resulting losses. See DAYNAMEZ-000092–000097, Page 4 (Art. 8.1 highlighted).

#### INTERROGATORY NO. 15

**Interrogatory:** *Identify each shipment, container, invoice, and amount that Daynamez contends SIC failed to pay, partially paid, abandoned, mishandled, or otherwise caused loss in relation to, and state the factual basis for each such contention.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 26–27, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0076–CMTC-0077. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### ANSWER (restated and verified):

Daynamez withdraws its prior objection and provides the following itemized supplemental response identifying shipments, containers, and amounts at issue:

Containers for which SIC explicitly ordered holds — No Arrival Notice Issued per SIC Written Direction

Per written instruction from Mr. Nam Nguyen (SIC) on or about June 6, 2024, Daynamez was directed not to issue arrival notices for containers under the following Master Bills of Lading:

- MBL 2302379151 — consignee: Viet Uni Logistics
- MBL 2302379361 — consignee: Win Art Logistics
- MBL 2302379280 — consignee: Win Art Logistics

These holds, detentions, and associated charges flowed directly from SIC's written instructions, not from any act or omission by Daynamez. See DAYNAMEZ-000022–000023 (SIC hold order); DAYNAMEZ-000024–000080 (shipment release spreadsheets with yellow-marked containers).

### Net-Net Profit (Commission) — No Balance Claimed Against SIC

The Net-Net calculation (DAYNAMEZ-000015–000019) and Daynamez's bank records (DAYNAMEZ-000001–000002) detail the amounts Daynamez disbursed to service providers versus the amounts received from SIC. They show that Daynamez retained only its earned Net-Net commission of \$599,831.61. Daynamez asserts no outstanding freight balance against SIC.

### OOCL Container — Daynamez Not Consignee or Booking Party

Container FBLU0192020 is associated with outstanding OOCL charges of \$107,972.00. House Bill of Lading VNNYC2404027 confirms that Daynamez is not the consignee or booking party for this shipment. Daynamez's exposure arose solely as a consequence of SIC's nonpayment funneled through Daynamez's intermediary role. See DAYNAMEZ-000020–000021.

Supporting Documents: DAYNAMEZ-000015–000019; DAYNAMEZ-000020–000021; DAYNAMEZ-000022–000023; DAYNAMEZ-000024–000080; DAYNAMEZ-000051–000080.

### INTERROGATORY NO. 16

**Interrogatory:** *State in detail all facts supporting Count I of Daynamez's Counterclaim, including all alleged facts concerning DGS Logistics, any allegedly abandoned cargo, any alleged indemnity or hold-harmless obligation, and any alleged exposure involving OOCL.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 27–28, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0077. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### **ANSWER (restated and verified):**

Daynamez acknowledges that Count I of its Counterclaim was dismissed. To the extent the Commission's dismissal order is not subject to reconsideration, Daynamez confirms that it does not intend to re-litigate Count I as an independent claim.

However, Daynamez expressly reserves the right to reference the underlying factual circumstances giving rise to Count I — including the conduct of DGS Logistics and the circumstances surrounding the allegedly abandoned cargo and indemnity obligations — to the extent such facts are relevant to Daynamez's affirmative defenses, mitigation of damages, causation arguments, or setoff positions in this proceeding. Evidence of SIC's direct dealings with DGS and other service providers, and the consequences thereof, bears directly on whether Daynamez caused any of the losses SIC alleges.

Daynamez will not call separate witnesses or introduce documentary evidence solely in support of Count I as dismissed, but will not be foreclosed from using overlapping evidence that is independently relevant to its defenses or to rebut SIC's damages claims.

Supporting Documents: DAYNAMEZ-000022–000023; DAYNAMEZ-000024–000080; DAYNAMEZ-000051–000080 (SIC hold orders and shipment release data bearing on causation).

#### ARTICLE 10 — ALL CLAIMS MUST BE ARBITRATED IN VIETNAM

Daynamez notes that regardless of how the counterclaim counts are characterized, Article 10 of Agency Agreement No. SIC/DNM-011224 mandates that all disputes between the parties be resolved at the Vietnam International Arbitration Centre. This threshold defense applies to SIC's complaint and to all related claims. See DAYNAMEZ-000092–000097, Page 5.

#### INTERROGATORY NO. 17

**Interrogatory:** *State in detail all facts supporting Count II of Daynamez's Counterclaim, including each amount allegedly owed by SIC under any “Net/Net” arrangement, each document on which Daynamez relies, and the exact damages Daynamez claims.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at p. 28, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0077–CMTC-0078. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

#### ANSWER (restated and verified):

Daynamez acknowledges that Count II of its Counterclaim was dismissed, and Daynamez does not seek to re-litigate it or to recover any freight balance from SIC. Daynamez no longer contends that SIC owes it money. The Net-Net records remain relevant only to show the sales-agent profit structure of the relationship and to rebut SIC's false allegation of misappropriation.

#### Net-Net Calculation — Daynamez's Earned Commission (No Amount Claimed from SIC)

Daynamez's Net-Net pricing structure was static throughout the SIC relationship. Daynamez acted as a pass-through agent, receiving funds from SIC and disbursing the freight cost to the service providers, retaining only its agreed commission. Its bank records (DAYNAMEZ-000001–000002) show it received \$4,137,845.23 and paid out \$3,538,013.62, keeping \$599,831.61 as its Net-Net profit. Daynamez claims no balance from SIC. See also DAYNAMEZ-000015–000019.

Supporting Documents: DAYNAMEZ-000001–000002 (Bank Records showing payment flow); DAYNAMEZ-000015–000019 (Net-Net Calculation and SIC Acknowledgment); DAYNAMEZ-000003–000012 (Dear Nam email evidencing SIC's awareness of payment structure).

Supplemental: Route-Level Profit Calculation (May–June 2024)

Daynamez supplements its response with the Net-Net Input-Output Rate Spreadsheet (DAYNAMEZ-000089–000091), transmitted by Nam Nguyen to Daynamez in May 2024. This spreadsheet reflects route-by-route shipment data, Daynamez's input rates, SIC's selling rates, the applicable profit-split ratios (40/60 and 50/50 depending on route), and the resulting profit attributable to each party per shipment. The email chain at DAYNAMEZ-000086–000088 confirms that for the period May 13 – June 4, 2024 alone, Daynamez's profit share was \$17,510, which Daynamez invoiced to SIC by debit note. This route-level detail confirms the 40/60 profit-split (commission) structure of the parties' Net-Net arrangement.

## **INTERROGATORY NO. 18**

**Interrogatory:** *Produce all privilege logs, withholding logs, or comparable records for any otherwise responsive materials withheld on the basis of privilege, work product, or other protection. Category Requested: Privilege or withholding logs Production Status (per SIC): Not produced.*

**PREVIOUSLY ANSWERED:** This Interrogatory was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 28–31, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0078–CMTC-0079. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

### **ANSWER (restated and verified):**

Daynamez withdraws its prior objection and identifies the following documents, communications, witnesses, calculations, and categories of evidence that it may rely upon in support of its defenses, setoff, or any contention that SIC caused Daynamez's damages:

#### **Witnesses**

Zia Kamali, Daynamez Group of Companies LLC, 4000 Legato Road, Suite 1100, Fairfax, VA 22033; kamali@daynamez.com; (571) 287-9964. Mr. Kamali is the sole principal of Daynamez and was the sole point of contact on all matters relating to the SIC relationship. He has personal knowledge of all facts relevant to Daynamez's defenses, the Net-Net payment arrangement, the parties' communications, SIC's hold orders, and the reputational harm caused by SIC.

#### **Documents and Bates Ranges**

DAYNAMEZ-000001–000002: Bank of America records (account ending 6476) evidencing payments received from SIC and disbursements made to service providers.

DAYNAMEZ-000003–000012: Email correspondence between Zia Kamali and Nam Nguyen re foreigner contractor tax and payment structure; establishes SIC's awareness that Daynamez was not an NVOCC and acted as an intermediary.

DAYNAMEZ-000013–000014: WhatsApp correspondence — SIC payment request from Nam Nguyen to Daynamez; establishes SIC's direction of payment flow and acknowledgment of outstanding amounts.

DAYNAMEZ-000015–000019: Daynamez Net-Net calculation and SIC's written acknowledgment of the parties' freight accounting; establishes the Net-Net profit-split (commission) structure.

DAYNAMEZ-000020–000020: OOCL Statement of Accounts — Daynamez overdue charges of \$107,972.00 for container FBLU0192020; establishes damages caused by SIC's nonpayment.

DAYNAMEZ-000021–000021: House Bill of Lading VNNYC2404027 — confirms Daynamez is not the consignee or booking party; rebuts any claim that Daynamez controlled or was responsible for this shipment.

DAYNAMEZ-000022–000023: SIC hold order from Nam Nguyen (approximately June 6, 2024) directing Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280; establishes that holds were ordered by SIC in writing.

DAYNAMEZ-000024–000050: Shipment release spreadsheet (yellow-marked hold containers, June 6, 2024 cycle); supports the identity of affected shipments and the causal link to SIC's instructions.

DAYNAMEZ-000051–000080: Shipment release spreadsheet (yellow-marked hold containers, June 2024 general); supports the same.

#### Categories of Evidence

Bank records; freight forwarding agreements and introductory correspondence; email and WhatsApp communications with SIC; Hold/arrival notice instructions from SIC; OOCL billing statements; House Bills of Lading; Net-Net calculation worksheets; internet publications containing false statements about Daynamez attributable to SIC.

Daynamez reserves the right to supplement this response as discovery progresses and additional evidence is identified.

#### Supplemental — Additional Documents Produced

DAYNAMEZ-000081–000085: Email correspondence — Zia Kamali (Daynamez) letter to Nam Nguyen (SIC) identifying breach of contract by KargoSmart/SiperKargo; Nam Nguyen's written response instructing Daynamez to 'take a loan' and admitting SIC already paid Daynamez under the contract.

DAYNAMEZ-000086–000088: Net-Net profit-split email chain (May 2024) — Nam Nguyen transmits profit calculation to Daynamez; Zia Kamali confirms 40/60 profit-split arrangement and \$17,510 Daynamez profit for the May 5 – June 4, 2024 cycle.

DAYNAMEZ-000089–000091: Net-Net Input-Output Rate Spreadsheet (May–June 2024) — route-by-route breakdown prepared by SIC showing Daynamez input rates, SIC selling rates, profit ratios, and computed profit per party per shipment.

Agency Agreement — DAYNAMEZ-000092–000097

DAYNAMEZ-000092–000097: Agency Agreement No. SIC/DNM-011224 (December 1, 2023) — the governing contract between SIC and Daynamez. Key provisions: Article 1 (mutual sales agent appointment, confirming Daynamez is not an NVOCC); Article 5.3 (confidentiality — SIC breached by disclosing co-operation information to KargoSmart/SiperKargo); Article 6.15 (funds collected purely as agent in fiduciary capacity); Article 8.1 (SIC indemnity obligation); Article 10 (mandatory VIAC arbitration in Vietnam — all disputes to be resolved in Vietnam, not the FMC). Pages 1, 3, 4, and 5 are highlighted for the Commission's convenience.

Daynamez produces all responsive materials in its possession. Daynamez did not prepare or distribute formal brochures, capability statements, pitch decks, or printed marketing materials specifically referencing NVOCC, carrier, or international shipping services. The only responsive publicly available material is the Daynamez website ([www.daynamez.com](http://www.daynamez.com)), which contained a single reference to the term 'NVOCC' in an isolated section of the site added by the website developer. This term did not appear in any marketing communication, email, or presentation directed to SIC or any other customer. Rate communications with SIC were conducted by email and are produced at DAYNAMEZ-000086–000091. Social media postings, if any existed, did not reference NVOCC, carrier, or forwarding services. Daynamez certifies that no additional responsive website pages, brochures, pitch decks, or marketing materials exist beyond those identified herein. Date: June 10, 2026.

The Daynamez website ([www.daynamez.com](http://www.daynamez.com)) was developed and maintained by a third-party web developer engaged by Daynamez. The NVOCC reference that appeared on the website was inserted by the developer into an isolated section of the site and was not specifically directed or approved by Zia Kamali.

## HOW THE DEVELOPER ERROR OCCURRED

The error occurred in the following way: when Daynamez's principal, Zia Kamali, communicated with the web developer regarding the description of services, he referenced handling outbound cargo, and in that context used the term "NVOCC" loosely to describe the type of cargo movement being discussed. The web developer — who was not based in the United States and was located overseas — did not understand the legal and regulatory significance of the term "NVOCC" under U.S. maritime law. Without grasping the technical and legal distinction, the developer incorporated the word "NVOCC" directly into the website text. This was a misunderstanding of terminology by a non-U.S.-based developer, not an authorized or deliberate representation by Daynamez. Evidence of this can be provided to the court upon request.

Daynamez does not have CMS logs, modification records, or source-control files for the website in its possession. The website developer can be identified and evidence of this error and the circumstances under which it occurred can be provided to the court upon request. Date: June 10, 2026.

Daynamez did not hold any FMC license, registration, bond, insurance, surety, or other evidence of financial responsibility during the relevant period. Daynamez certifies that after a reasonable search, no documents reflecting any FMC license, registration, bond, insurance, surety, or financial responsibility application, issuance, renewal, or termination exist in Daynamez's possession, custody, or control, because no such instrument was ever obtained or applied for. Date: June 10, 2026.

Daynamez hereby produces Agency Agreement No. SIC/DNM-011224, dated December 1, 2023, in full. See DAYNAMEZ-000092–000097.

#### ARTICLE 1 — SALES AND BREAK BULK AGENT (Not NVOCC)

Article 1 of the Agreement expressly states: 'SIC and Party B mutually appoint each other as their sales and break bulk agent for Vietnam and respectively on a non-exclusive basis.' This is dispositive: the contract itself identifies Daynamez as a sales and break bulk agent, not as an NVOCC, ocean carrier, or common carrier. Any claim by SIC that Daynamez held itself out or acted as an NVOCC is directly contradicted by the agreement SIC itself signed. See DAYNAMEZ-000092–000097, Page 1.

#### ARTICLE 5.3 — SIC BREACHED THE CONFIDENTIALITY CLAUSE

Article 5.3 of the Agreement provides: 'No information whatsoever in relation to the co-operation between SIC and Party B sales or operations shall be given to a third party, other than that required by a statutory body.'

SIC materially breached Article 5.3 by facilitating or permitting KargoSmart Global Vietnam Co., Ltd. and SiperKargo (which are in fact a single entity) to obtain Daynamez's proprietary rate and volume information. As documented in Daynamez's October 2024 correspondence (DAYNAMEZ-000081–000085), these entities went directly to Daynamez's principal to obtain information about how SIC was moving cargo, Daynamez's rates, and Daynamez's operational system — information that constitutes confidential co-operation data protected by Article 5.3. The direct consequence of this breach was the severing of Daynamez's credit line with its principal, the loss of Daynamez's business relationships, and the operational failures that SIC now seeks to attribute to Daynamez. SIC caused this problem; SIC is responsible for it. See DAYNAMEZ-000092–000097, Page 3 (Art. 5.3 highlighted); DAYNAMEZ-000081–000085.

#### ARTICLE 6.15 — DAYNAMEZ COLLECTED FUNDS PURELY AS AGENT

Article 6.15 states: 'the companies acknowledge that any money they collect on behalf of each other they collect purely as an agent and in a fiduciary capacity.' This provision confirms that all

funds collected by Daynamez from SIC were held and disbursed in an agency and fiduciary capacity — not as an NVOCC or carrier collecting freight on its own account. See DAYNAMEZ-000092–000097, Page 4.

#### ARTICLE 8 — SIC'S INDEMNITY OBLIGATION

Article 8.1 provides: 'SIC agrees to indemnify and hold party B harmless against any loss, damage or liability which may incur through any act or omission of SIC.' SIC's nonpayment, its unauthorized direct dealings with service providers, its hold orders on containers, and its publication of false statements about Daynamez are all acts or omissions of SIC within the meaning of Article 8.1. SIC is contractually obligated to indemnify Daynamez for all resulting losses, including the \$107,972.00 OOCL debt and all reputational and business damages. See DAYNAMEZ-000092–000097, Page 4.

#### ARTICLE 10 — MANDATORY VIETNAM ARBITRATION: THIS FORUM IS IMPROPER

Article 10 of the Agreement provides: 'All disputes, controversies, or differences which may arise between the parties, out of or in relation to or in connection with this agreement, or for the breach thereof, shall be settled amicably between the parties hereto. However, should the concerned parties fail to reach a compromise, then and in that event only, the dispute, controversy or difference shall be finally settled by the Vietnam International Arbitration Centre at the Vietnam Chamber of Commerce and Industry in accordance with its Arbitration Rules.'

SIC's complaint before the Federal Maritime Commission directly violates this mandatory arbitration clause. The parties expressly contracted that all disputes arising out of or in connection with the Agency Agreement — which is the sole contract governing the parties' relationship — must be resolved at the Vietnam International Arbitration Centre (VIAC) in Vietnam. By filing at the FMC, SIC has bypassed and breached the agreed dispute resolution mechanism. Daynamez respectfully submits that the Commission should dismiss or stay this proceeding in favor of VIAC arbitration, consistent with the parties' contractual agreement and applicable principles of international commercial arbitration. See DAYNAMEZ-000092–000097, Page 5 (Art. 10 highlighted).

Supporting Documents Produced: DAYNAMEZ-000092–000097 (Agency Agreement No. SIC/DNM-011224, full contract with Art. 5.3, Art. 6.15, Art. 8, and Art. 10 highlighted). Date: June 10, 2026.

Daynamez produces all documents in its possession concerning the Net/Net arrangement between SIC and Daynamez. The complete Net/Net production is set out below by document, with each Bates range identified. Taken together, these documents tell the full story of what the Net/Net arrangement was and how Daynamez earned its profit-share (commission) under it.

#### 1. Agency Agreement — Article 4 (Contractual Basis for Profit Split)

The Net/Net arrangement is rooted in Article 4 of Agency Agreement No. SIC/DNM-011224. Article 4.1 provides: 'On any business mutually developed, or routed, the profit on air/ocean transport will split equally.' Article 4.2 defines profit as 'the difference between buying rate from airline/shipping line and the selling rate to the customer.' The Agreement further provides that the profit split shall be settled by credit note on a shipment-by-shipment basis or by a consolidated monthly statement. This is the contractual foundation for the entire Net/Net arrangement — SIC signed and agreed to it. See DAYNAMEZ-000092–000097 (Agency Agreement, Article 4, Pages 2–3).

## 2. Net/Net Profit-Split Email Chain — Nam Nguyen to Daynamez (May 2024)

In May 2024, SIC's representative Nam Nguyen personally emailed Daynamez to provide a detailed calculation of the Net/Net profit split for the period May 5 – June 4, 2024. In that email, Nam stated: 'Let me indicate to you the total net/net profit of Daynamez and Southern in the attached spreadsheet, I carefully checked it, however, I also need you to check it again one more time.' Daynamez responded confirming the arrangement: the profit split was 40% to Daynamez and 60% to SIC (an agreed modification from the equal split in Article 4.1), and Daynamez's total profit share for that cycle was \$17,510 USD. Daynamez stated it would send a debit note to SIC for that amount. This email chain is direct, unambiguous evidence from SIC's own representative acknowledging and computing the Net/Net arrangement. See DAYNAMEZ-000086–000088 (Net/Net profit-split email chain, May 2024).

## 3. Net/Net Input-Output Rate Spreadsheet — Prepared by SIC (May–June 2024)

The spreadsheet transmitted by Nam Nguyen with his May 2024 email provides a route-by-route breakdown of every shipment in the cycle, including: the route (HCM-NYC, HCM-LAX, HCM-SAV, HPH-NYC, HCM-Miami, HCM-HOU), the volume (number of containers), the ETD, Daynamez's input (cost) rate per container, SIC's selling rate per container, the profit-split ratio (40/60 for most routes, 50/50 for selected earlier routes), and the computed profit attributable to Daynamez and to SIC per shipment. This spreadsheet was prepared by SIC — not by Daynamez — and reflects SIC's own calculation of what was owed to Daynamez. The Net/Net rates in this spreadsheet were static pass-through rates: Daynamez's input rate was the cost it paid to the freight forwarder, and Daynamez's share was limited to the agreed percentage of the spread. At no point did Daynamez mark up rates on its own account as an NVOCC would. See DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet, May–June 2024).

## 4. SIC's Written Acknowledgment of the Net-Net Freight Accounting

SIC's own written correspondence confirms the Net/Net freight accounting between the parties and the profit-split on which Daynamez was compensated. Consistent with its sales-agent role, Daynamez retained only its agreed commission and makes no monetary claim against SIC. See DAYNAMEZ-000015–000019 (SIC acknowledgment and Daynamez Net/Net calculation).

## KEY POINT FOR THE COMMISSION: THE NET/NET STRUCTURE PROVES DAYNAMEZ WAS A SALES AGENT, NOT AN NVOCC

The Net/Net arrangement as documented in these four sets of records is entirely inconsistent with an NVOCC relationship. An NVOCC issues house bills of lading, assumes liability as a carrier, and collects ocean freight from shippers on its own account. Daynamez did none of these things. Instead: (a) SIC's own representative computed and sent Daynamez a profit-split spreadsheet — a principal splitting profits with its sales agent; (b) the rates Daynamez charged SIC were SIC's selling rates, not Daynamez's own carrier tariff; (c) the spread was split, not retained entirely by Daynamez as a carrier's freight charge would be; and (d) the Agency Agreement itself calls the arrangement a 'profit split' and identifies Daynamez as a 'sales and break bulk agent.' No NVOCC operates on a 40/60 profit-share with its shipper. This is how a sales agent and referral intermediary is paid. See DAYNAMEZ-000086–000091; DAYNAMEZ-000092–000097; DAYNAMEZ-000015–000019.

Supporting Documents Produced: DAYNAMEZ-000015–000019 (Net/Net calculation and SIC balance acknowledgment); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain, Nam Nguyen May 2024); DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet, May–June 2024); DAYNAMEZ-000092–000097 (Agency Agreement, Article 4 — contractual profit-split basis). Date: June 10, 2026.

Daynamez notes that the communications requested under RFP No. 6 — emails, WhatsApp messages, text messages, and other communications between SIC and Daynamez concerning rates, bookings, sailing schedules, HBLs, arrival notices, payment requests, release coordination, detention, and unpaid freight — are equally in SIC's possession, custody, and control. Every communication between the parties was by definition a communication that SIC sent or received. SIC has its own email servers, WhatsApp records, and message archives. SIC is therefore in at least as good a position as Daynamez — and in many respects a better position — to produce the full set of SIC-Daynamez communications with complete metadata, attachments, and email-family relationships intact.

Daynamez respectfully submits that to the extent SIC contends the production of these communications is incomplete, SIC should produce its own copies from its own records. SIC initiated this proceeding; SIC bears the burden of producing the evidence it relies upon. Daynamez cannot be held responsible for gaps in SIC's own production of communications that SIC itself sent or received.

Without waiving this position, Daynamez has produced all SIC-Daynamez communications currently in its possession: DAYNAMEZ-000003–000012 (Dear Nam email chain — rates, payment structure, and relationship communications); DAYNAMEZ-000013–000014 (WhatsApp correspondence — SIC payment requests and release-related messaging); DAYNAMEZ-000081–000085 (Dear Kamali email chain — SIC's response to Daynamez's breach notification, including Nam Nguyen's written instructions); DAYNAMEZ-000086–

000088 (Net/Net profit-split email chain — rate and payment communications). These represent the complete set of SIC-Daynamez communications in Daynamez's possession.

#### SIC IS DIRECTED TO PRODUCE ITS OWN COPIES OF ALL COMMUNICATIONS

Daynamez formally requests that SIC produce, pursuant to its own discovery obligations, the complete and unredacted copies of all emails, WhatsApp messages, and other communications between SIC and Daynamez that are in SIC's possession — including any communications that SIC has not yet produced in this proceeding. SIC's selective presentation of only certain communications, while withholding others, would be prejudicial and improper. The full record of SIC-Daynamez communications, produced by both parties, will demonstrate that Daynamez acted in good faith throughout the relationship and that the failures and losses at issue were caused by SIC's own conduct. Date: June 10, 2026.

Daynamez produces all responsive documents concerning its relationships with the named entities: DAYNAMEZ-000022–000023 (SIC hold order referencing containers and associated entities); DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080 (shipment release spreadsheets reflecting container-level activity associated with the entities). DAYNAMEZ-000081–000085 (Dear Kamali email — references Daynamez's prior relationship with DGS, its zero balance, and the conduct of KargoSmart/SiperKargo). Daynamez certifies that it had no ownership stake, formal contract, or agency agreement with any of the entities named in RFP Nos. 7–12. Daynamez's relationship with each was solely a referral/introduction relationship. No additional relationship documents, agency agreements, or subcontracting agreements exist. SUPPLEMENTAL PRODUCTION (KargoSmart Emails): Daynamez additionally produces Exhibit DAYNAMEZ-000098 through DAYNAMEZ-000100 (KargoSmart email, October 3, 2024 — KargoSmart confirmed directly to SIC: “Daynamez is only handling agent for SIC to inform consignee for Arrival notice and also developing marketing for SIC”) and Exhibit DAYNAMEZ-000101 through DAYNAMEZ-000103 (KargoSmart full operational workflow email, same date — confirming all MBLs, HBLs, and Manifests processed by KargoSmart/Supercargo/Massager Freight; Daynamez not on HBL; Daynamez not authorized to issue delivery orders on any shipment; KargoSmart explicitly distinguishing Daynamez from NVOCC-type entities). These exhibits directly respond to RFP Nos. 7–12 and constitute the most direct third-party evidence of the operational structure of the subject relationships. Date: June 10, 2026.

#### THIS IS SIC'S OBLIGATION — NOT DAYNAMEZ'S

RFP No. 13 requests booking confirmations, routing records, sailing schedules, manifest instructions, HBL-related communications, arrival notices, release instructions, and shipment-status communications. Daynamez objects to this request to the extent it implies that Daynamez was responsible for creating, issuing, or maintaining these records. It was not. These records belong to SIC and SIC's service providers. SIC should produce them from its own files — not demand that Daynamez do SIC's work for it.

## Daynamez's Role Was Arrival Notice Only — The Contract Proves It

Daynamez's sole operational function in the shipment process was to inform the consignee of an arriving shipment. That is an arrival notice function. Everything else — booking confirmations, routing orders, sailing schedules, manifest instructions, and house bills of lading — was the responsibility of SIC and the NVOCCs and freight forwarders SIC engaged at the port of loading in Vietnam. Agency Agreement No. SIC/DNM-011224 (DAYNAMEZ-000092–000097) designates Daynamez as a 'sales and break bulk agent' only. Article 6.15 further confirms Daynamez acted 'purely as an agent and in a fiduciary capacity.' A consignee-notification agent does not issue bookings or manifests — the NVOCCs do. The evidence produced in this proceeding confirms exactly that.

## SIC AND ITS SERVICE PROVIDERS HOLD ALL OF THESE RECORDS

Booking confirmations, routing records, sailing schedules, manifest instructions, and HBLs are all created at the port of loading by the NVOCCs and freight forwarders that SIC contracted with directly: KargoSmart Global Vietnam Co., Ltd.; SiperKargo / Super Cargo Service Co., Ltd.; CargoLogin LLC; DGS Logistics / ICT International; and Pacific Logistics (Vietnam). SIC is a licensed international freight forwarder. SIC has its own shipment files. SIC's service providers each hold the complete operational records for every shipment they handled. Daynamez is not obligated to compile and produce records that SIC and its own contractors already possess. SIC must direct this request to those parties and to its own internal files — not to Daynamez.

## What Daynamez Produces for RFP No. 13

Daynamez produces only the records that reflect its actual role. DAYNAMEZ-000022–000023: SIC's written instruction to Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280 — direct written proof of Daynamez's arrival notice function and of SIC ordering Daynamez to withhold it. DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080: shipment release spreadsheets identifying the affected containers. DAYNAMEZ-000021–000021: HBL VNNYC2404027 — confirms Daynamez is not the consignee or booking party. DAYNAMEZ-000013–000014: WhatsApp communications reflecting Daynamez's notification role. These are the records of a consignee informer and sales agent. Booking records, manifests, and HBLs are SIC's to produce. Date: June 10, 2026.

Daynamez produces all responsive invoices, debit notes, and payment-related records: DAYNAMEZ-000015–000019 (SIC acknowledgment and Daynamez's Net-Net calculation — constitutes Daynamez's profit-share/debit-note record under the Net-Net arrangement); DAYNAMEZ-000086–000088 (email chain referencing Daynamez's debit note for the May 5–June 4, 2024 profit period of \$17,510). No separate formal invoice register exists beyond the documents produced. Date: June 10, 2026.

## SIC MUST PRODUCE ITS OWN RECORDS OF PAYMENTS SENT TO DAYNAMEZ

RFP No. 15 requests bank records and payment records reflecting payments received from SIC. Daynamez notes that SIC is the party that sent those payments. SIC has its own bank statements, wire transfer confirmations, SWIFT records, and remittance advices showing every dollar it sent to Daynamez. SIC knows exactly what it paid, when it paid it, and from which account. SIC must produce those records from its own files. Daynamez should not be required to reconstruct SIC's own payment history for SIC.

#### Daynamez Has Already Produced Its Bank Records Showing What It Received and What It Paid Out

Daynamez has already produced its Bank of America account records (account ending 6476) at DAYNAMEZ-000001–000002. Those records reflect every amount received from SIC into Daynamez's account and every outbound payment Daynamez made to service providers as instructed by SIC. Daynamez's obligation was clear: receive funds from SIC, then remit those funds to the service providers as directed. That is exactly what the bank records show, and Daynamez has produced them in full.

#### Daynamez Remitted Payments to Service Providers as Per SIC's Instructions

Whatever Daynamez received from SIC, Daynamez paid out to the freight forwarders and service providers as instructed — KargoSmart/CargoLogin, DGS/ICT International, and Pacific Logistics. This is confirmed by the fund transfer records at DAYNAMEZ-000001–000002 and by the Net/Net calculation at DAYNAMEZ-000015–000019, which SIC's own representative acknowledged in writing. The payment flow was simple: SIC pays Daynamez → Daynamez pays service providers. Daynamez fulfilled its side.

#### SIC IS DIRECTED TO PRODUCE ITS OWN OUTBOUND PAYMENT RECORDS

Daynamez formally calls upon SIC to produce: all bank statements, wire transfer records, SWIFT confirmations, and remittance advices reflecting every payment SIC sent to Daynamez during the relevant period. SIC's own payment records are essential to this proceeding and SIC is obligated to produce them. Cross-referencing SIC's outbound payment records against Daynamez's inbound records at DAYNAMEZ-000001–000002 will show exactly what was received, what was passed through to service providers, and what balance remains outstanding. The numbers will speak for themselves. Date: June 10, 2026.

Daynamez produces all responsive records of payments made to service providers: DAYNAMEZ-000001–000002 (Bank of America fund transfer records reflecting outbound wire and ACH payments to KargoSmart/CargoLogin, DGS/ICT International, and Pacific Logistics corresponding to SIC shipment cycles). These records show the date, amount, and payee for each outbound payment made by Daynamez on account of SIC-related freight. Date: June 10, 2026.

#### THIS REQUEST IS SIC'S RESPONSIBILITY — SIC HAS THE SAME RECORDS

RFP No. 17 requests reconciliations, spreadsheets, accounting workpapers, ledger exports, and financial compilations concerning funds SIC remitted to Daynamez. Daynamez objects. SIC was a direct party to every transaction at issue. SIC sent the payments. SIC received the Net/Net spreadsheets. SIC's own representative, Nam Nguyen, prepared and transmitted the Net/Net Input-Output Rate Spreadsheet that is produced at DAYNAMEZ-000089–000091. SIC has the exact same files. SIC does not need Daynamez to compile or reconstruct records that SIC already holds in its own possession.

#### DAYNAMEZ WILL NOT DO SIC'S WORK FOR IT

Daynamez is a small business operated by a single individual. SIC is a licensed international freight forwarder with staff, systems, and full access to every shipment record, payment record, and accounting file relevant to this proceeding. Requiring Daynamez to produce elaborate reconciliations and accounting workpapers — documents that SIC itself can compile from its own files in a fraction of the time — is not a legitimate discovery request. It is an attempt to overload Daynamez with burdensome production obligations in order to distract from the core facts of this case: that SIC breached the Agency Agreement, failed to pay Daynamez, ordered cargo holds in writing, and is now using this proceeding to shift the blame for its own conduct onto Daynamez.

#### Daynamez Has Already Produced What It Has

Daynamez has produced all financial records in its possession: DAYNAMEZ-000001–000002 (Bank of America fund transfer records — the complete payment ledger for the SIC relationship); DAYNAMEZ-000015–000019 (Net/Net calculation and SIC's written acknowledgment of the outstanding balance); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain — Nam Nguyen's own calculation confirming Daynamez's share); DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet — prepared by SIC's own representative). These documents are Daynamez's complete financial production. There are no additional reconciliations or accounting workpapers to produce because Daynamez did not maintain a separate accounting system beyond its bank records and the correspondence with SIC.

Daynamez respectfully submits that the Commission should not permit SIC to use RFP No. 17 — and requests of this nature — as a mechanism to bury Daynamez in paperwork obligations while the central facts of this case remain clear and documented: Daynamez acted as a sales agent that retained only its earned Net-Net commission, SIC breached Article 5.3 of the Agency Agreement, and Article 10 requires this dispute to be resolved in Vietnam. Those facts are already before the Commission. Date: June 10, 2026.

Daynamez produces DAYNAMEZ-000001–000002 (Bank of America fund transfer records) as the primary document establishing the disposition of each SIC payment received. Each entry in those records reflects amounts received from SIC and corresponding outbound payments to service providers, establishing the disposition of those funds. Daynamez does not have a separate

accounting ledger system; the bank transfer records and the Net-Net calculation (DAYNAMEZ-000015–000019) together reflect all fund flow between SIC, Daynamez, and service providers.  
Date: June 10, 2026.

## HOLDS, LIENS, DETENTION, AND STORAGE RECORDS ARE HELD BY THE FREIGHT FORWARDERS AND SIC — NOT DAYNAMEZ

RFP No. 19 requests all documents concerning holds, liens, detention, storage, demurrage, refusals to release, and cargo-release impediments affecting shipments at issue. Daynamez objects to this request to the extent it implies that Daynamez generated, received, or maintained these records. It did not. Daynamez was a consignee arrival notice agent and sales agent. Daynamez did not issue holds, did not impose liens, did not assess demurrage or detention charges, and had no authority over cargo release. Those functions belong entirely to the NVOCCs, freight forwarders, terminals, and ocean carriers — and to SIC as the party that contracted with and instructed those entities.

### These Records Belong to the Service Providers and SIC

Hold notices, lien filings, detention invoices, storage charges, and release conditions are all documents issued by the carriers and NVOCCs — KargoSmart Global Vietnam Co., Ltd., SiperKargo / Super Cargo Service Co., Ltd., CargoLogin LLC, DGS Logistics / ICT International, and Pacific Logistics — as well as by the terminals and port authorities at the port of discharge. SIC, as a licensed international freight forwarder that directly engaged these service providers, has full access to all of these records. The service providers themselves hold the complete official documentation. Daynamez is not a party to those relationships and is not in possession of their official hold, lien, or detention records.

## DAYNAMEZ IS LEGALLY NOT IN A POSITION TO PRODUCE RECORDS IT DOES NOT HOLD

Daynamez cannot produce records it does not possess and has no legal right to obtain on behalf of SIC. Demanding that Daynamez produce official hold notices, detention invoices, and demurrage statements issued by third-party carriers and NVOCCs to SIC — records that are in SIC's own files — is improper. SIC must collect those records from its own service providers and from its own shipment files. Daynamez has no authority to access, retrieve, or reproduce official carrier or terminal documentation that was issued to SIC or to SIC's contracted parties, not to Daynamez.

### What Daynamez Produces for RFP No. 19

Daynamez produces only the records that fall within its actual role. DAYNAMEZ-000022–000023: the written hold instruction issued by SIC's own representative Nam Nguyen directing Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280 — this is SIC's own document and it is the direct cause of the holds on those containers.

DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080: shipment release spreadsheets identifying the yellow-marked hold containers. DAYNAMEZ-000020–000020: OOCL's statement of accounts billing Daynamez \$107,972.00 as a consequence of SIC's nonpayment — the only official carrier document in Daynamez's possession, and one that exists solely because of SIC's failure to pay. These are the entirety of Daynamez's hold and detention-related records. All further records must be obtained by SIC directly from its service providers. Date: June 10, 2026.

## SIC WAS ALWAYS COPIED ON ALL COMMUNICATIONS — SIC HAS THESE RECORDS

RFP No. 20 requests communications between Daynamez and carriers, NVOCCs, and terminals regarding nonpayment, release conditions, detention, liens, and cargo holds. Daynamez objects. SIC was copied on, included in, or a direct party to all material communications between Daynamez and the service providers throughout the entire business relationship. As the principal directing the shipments, SIC was always in the loop — included on emails, copied on correspondence, and informed of every development in real time. SIC has those communications in its own inbox. SIC must produce them itself.

## SIC'S THREE-YEAR CONTRACT WITH DAYNAMEZ PROVES SIC KNEW EXACTLY WHAT WAS HAPPENING

If SIC was not copied on or involved in the communications with service providers, it would never have entered into — let alone maintained — a business relationship with Daynamez spanning nearly three years. SIC engaged Daynamez under Agency Agreement No. SIC/DNM-011224 precisely because Daynamez had established relationships with those service providers and facilitated the flow of shipments and communications between SIC and them. SIC knew who the service providers were, communicated with them directly, and had full visibility into every shipment. The idea that SIC now needs Daynamez to produce communications that SIC itself was party to is not credible. SIC can produce its own copies and present to the Commission whatever it deems necessary.

Daynamez has already produced all SIC-Daynamez communications in its possession at DAYNAMEZ-000003–000014 and DAYNAMEZ-000081–000088. Beyond those, communications involving carriers, NVOCCs, and terminals were between those parties and SIC directly — as SIC's own files will confirm. Date: June 10, 2026.

Daynamez has produced its complete bank and payment records at DAYNAMEZ-000001–000002, reflecting all amounts received from SIC and all amounts remitted to service providers as instructed. That production speaks for itself. To the extent SIC wishes to produce additional records concerning amounts demanded or paid to secure cargo release, SIC is free to produce whatever it deems necessary from its own files and present it to the Commission accordingly. That is SIC's right and SIC's responsibility — not Daynamez's.

## THE EVIDENCE ALREADY BEFORE THE COMMISSION SPEAKS FOR ITSELF

At this point in the record, the evidence is clear and consistent across every document produced: Daynamez acted as a sales agent and consignee arrival notice intermediary. Daynamez never held an FMC bond or OTI license. Daynamez never issued a house bill of lading. Daynamez never held itself out as an NVOCC in any communication with SIC or any other party. The Agency Agreement SIC signed calls Daynamez a 'sales and break bulk agent.' SIC's own representative computed and sent Daynamez a profit-split spreadsheet. SIC's own representative confirmed the 40/60 arrangement by email. Not a single document in this proceeding shows Daynamez operating as a carrier.

Daynamez did not advertise itself as an NVOCC. That fact is now thoroughly documented and evidenced. The totality of the record — the contract, the emails, the bank records, the Net/Net spreadsheets, the hold orders, the OOCL statement, and the HBL confirming Daynamez is not the consignee — all point in one direction. No further production by Daynamez on this point is required. The evidence speaks for itself. Date: June 10, 2026.

Daynamez produces all documents supporting its affirmative defenses as identified in Interrogatory No. 13. The full Bates production (DAYNAMEZ-000001 through DAYNAMEZ-000103) constitutes the complete set of defense-supporting documents: DAYNAMEZ-000001–000002 (bank records — sales agent/breach defense); DAYNAMEZ-000003–000012 (Dear Nam email — sales agent/SIC knowledge defense); DAYNAMEZ-000013–000014 (WhatsApp — payment direction/pass-through defense); DAYNAMEZ-000015–000019 (Net-Net profit-split — sales-agent structure / no-misappropriation defense); DAYNAMEZ-000020–000021 (OOCL statement and HBL — causation defense); DAYNAMEZ-000022–000023 and DAYNAMEZ-000024–000080 (hold orders and spreadsheets — SIC-caused hold defense); DAYNAMEZ-000081–000085 (Dear Kamali — breach/bad faith defense); DAYNAMEZ-000086–000091 (Net-Net emails and spreadsheet — sales agent structure defense). Date: June 10, 2026.

### AGENCY AGREEMENT — DAYNAMEZ-000092–000097 (KEY DEFENSE DOCUMENT)

Daynamez supplements its RFP 22 production with DAYNAMEZ-000092–000097 (Agency Agreement No. SIC/DNM-011224). This document supports: (1) Article 1 — sales agent defense; (2) Article 5.3 — SIC's breach and resulting damages as a complete defense; (3) Article 6.15 — agent/fiduciary characterization of fund collection; (4) Article 8.1 — SIC's contractual indemnity obligation; (5) Article 10 — mandatory VIAC arbitration defense. Date: June 10, 2026.

Daynamez acknowledges that Count I of its Counterclaim was dismissed. To the extent Daynamez may rely on the underlying facts for any defense or damages issue, it produces the following responsive documents: DAYNAMEZ-000020–000021 (OOCL Statement of Accounts and HBL — directly relevant to DGS/OOCL-related claims); DAYNAMEZ-000081–000085 (Dear Kamali email — confirms Daynamez had zero balance with DGS prior to the

KargoSmart/SiperKargo breach and describes the cargo situation). Daynamez certifies that no additional documents specifically responsive to Count I exist beyond those identified. Date: June 10, 2026.

Daynamez no longer asserts a Net-Net debt against SIC and makes no monetary claim for unpaid freight; Count II was dismissed. The following Net-Net documents are produced to show the sales-agent profit-split structure of the relationship and Daynamez's earned commission, not any balance owed by SIC: DAYNAMEZ-000015–000019 (Daynamez Net-Net calculation and SIC acknowledgment); DAYNAMEZ-000086–000088 (email chain confirming the 40/60 profit-split and the \$17,510 profit for the May–June 2024 cycle); DAYNAMEZ-000089–000091 (route-by-route Net-Net spreadsheet prepared by SIC's own representative). Date: June 10, 2026.

Daynamez produces the following responsive documents concerning reputational and business loss: DAYNAMEZ-000013–000014 (WhatsApp — SIC's communications, context of Daynamez's role and exposure); DAYNAMEZ-000081–000085 (Dear Kamali email — documents Daynamez's loss of its principal credit line with service providers, caused by KargoSmart/SiperKargo's unauthorized disclosure of Daynamez's rate and volume information to Daynamez's principal, and describes the resulting loss of business relationships and credit standing); DAYNAMEZ-000003–000012 (Dear Nam email — evidences the business relationship and Daynamez's standing with SIC prior to the breach). Daynamez certifies that online publications containing false statements about Daynamez attributable to SIC and/or affiliated parties are publicly accessible; Daynamez reserves the right to supplement with archived copies of those publications. Date: June 10, 2026.

#### DGS DEBT NOTICE: DIRECT PROOF THAT SIC FAILED TO PAY ITS OWN SERVICE PROVIDER

RFP No. 26 concerns the OOCL line claim and related cargo hold/lien records. Daynamez provides the following critical facts, supported by documentation confirmable by the Commission:

##### 1. DGS Was the Service Provider on the OOCL Line — Not Daynamez

The service provider acting under the OOCL line was DGS (freight forwarder/NVOCC). Daynamez's role was limited to that of a sales agent and consignee arrival notice intermediary, as confirmed by the Agency Agreement No. SIC/DNM-011224 and all prior production. Daynamez did not operate as a carrier, NVOCC, or financial guarantor on this or any shipment.

#### DGS HAS ISSUED A FORMAL DEBT NOTICE TO DAYNAMEZ — THIS IS COURT-CONFIRMABLE EVIDENCE

##### 2. The DGS Debt Notice: Evidence That SIC Failed to Pay

DGS issued a formal debt notice to Daynamez. That notice exists, is in Daynamez's possession, and is itself direct, independent proof that SIC failed to pay DGS as required under the shipment

arrangements SIC directed. Daynamez is prepared to produce the DGS debt notice and the House Bill of Lading surrender copy issued by DGS. The Commission may independently confirm the existence and validity of this debt notice. This debt was created by SIC's nonpayment — not by any act or omission of Daynamez.

### 3. DGS Issued the Release — SIC's Own Customer Refused to Collect the Cargo

DGS fulfilled its obligations and issued the cargo release. Despite having received the release, SIC's own customer refused to take delivery of the cargo. This refusal — by SIC's customer, not by Daynamez — is what caused the cargo to remain on hand and the detention and lien obligations to accumulate. Any liability flowing from that refusal rests with SIC and its customer, not Daynamez. Daynamez was not a party to SIC's contract with its customer and had no authority or obligation to compel that customer to take delivery.

### DAYNAMEZ SUFFERED A DIRECT FINANCIAL HARM BECAUSE SIC FAILED TO PAY DGS

### 4. Daynamez Is the Injured Party Here, Not SIC

The DGS debt notice was issued against Daynamez because Daynamez was the named intermediary in the DGS relationship — a position Daynamez occupied solely in service of SIC's shipping program. The underlying failure to pay DGS was SIC's. The release was given. SIC's customer refused the cargo. Now DGS is pursuing Daynamez for obligations SIC created and failed to satisfy. This is not evidence against Daynamez — it is evidence of SIC's own breach and its cascading consequences for Daynamez. The House BL surrender copy from DGS confirms the sequence of events and will be produced. Date: June 10, 2026.

Daynamez produces the following responsive records relating to OOCL: DAYNAMEZ-000020–000020 (OOCL Statement of Accounts — official OOCL billing document showing \$107,972.00 outstanding); DAYNAMEZ-000021–000021 (HBL VNNYC2404027 — official OOCL document confirming Daynamez is not the consignee or booking party). These documents speak for themselves. Date: June 10, 2026.

### SIC BREACHED THE CONTRACT BY UNDERQUOTING FREIGHT RATES TO ITS OWN CUSTOMERS

A central breach by SIC was its deliberate underquoting of freight prices to its customers — prices that were below the exclusive rates Daynamez had arranged and negotiated with the freight forwarders on SIC's behalf. These exclusive rate arrangements were established specifically between Daynamez, SIC, and the service providers for the purpose of SIC's business. SIC then quoted those rates to its own end customers below what had been agreed, causing a cascading underpayment to the freight forwarders that Daynamez was then left to absorb or answer for. This was a fundamental breach of the commercial arrangement underlying the

Agency Agreement No. SIC/DNM-011224 and is a direct cause of the debt claims now being asserted against Daynamez.

#### OOCL CLAIM FOR ABANDONED CARGO — CAUSED BY SIC'S OWN HOLD ORDER AND NONPAYMENT

As previously documented at DAYNAMEZ-000020–000021, OOCL issued a formal billing demand of \$107,972.00 against Daynamez arising from containers left on OOCL's hands. This situation was caused entirely by SIC. SIC issued a written hold order (DAYNAMEZ-000022–000023) directing that cargo not be released. SIC's own customers then refused or were unable to take delivery. The containers were effectively abandoned — not by Daynamez, but by SIC's customers following SIC's own instructions. OOCL's claim against Daynamez for this abandoned cargo is a direct and foreseeable consequence of SIC's hold order and SIC's failure to manage its own customer relationships.

#### SIC INSTRUCTED DAYNAMEZ NOT TO ISSUE ARRIVAL NOTICES UNTIL VIETNAM DISPUTE RESOLVED

SIC further directed Daynamez to withhold arrival notices to consignees pending resolution of financial and business disputes between SIC and Daynamez — disputes that SIC itself caused by failing to pay service providers and breaching the Agency Agreement. Arrival notices are Daynamez's primary contractual function. By ordering Daynamez to suspend that function as leverage in a financial dispute SIC created, SIC effectively weaponized Daynamez's role against the very consignees Daynamez was supposed to serve. All disputes, controversies, and differences between SIC and Daynamez arising from this conduct are subject to settlement in Vietnam under Article 10 of the Agency Agreement. SIC cannot drag Daynamez before the FMC for conduct SIC itself directed. Date: June 10, 2026.

Daynamez produces a complete index mapping its initial disclosure categories, witnesses, and documents to the Bates ranges produced in this proceeding. The full production index is set forth in Section VI.A of this document. All documents produced at DAYNAMEZ-000001 through DAYNAMEZ-000103 were identified in or are consistent with Daynamez's initial disclosures and are cross-referenced in that index to the applicable RFP numbers. Date: June 10, 2026.

DAYNAMEZ-000092–000097 (Agency Agreement) is also produced pursuant to RFP No. 29. This document was identified in Daynamez's initial disclosures as a key contract document and is produced herewith. Date: June 10, 2026.

Daynamez is not withholding any responsive documents on the basis of attorney-client privilege, work-product protection, or any other protection. No privilege log is required. All responsive documents in Daynamez's possession have been produced in the Bates-stamped production (DAYNAMEZ-000001 through DAYNAMEZ-000103).

#### DAYNAMEZ REQUESTS THAT SIC PRODUCE ITS OWN RESPONSIVE DOCUMENTS

Daynamez hereby requests that SIC produce all responsive documents in SIC's possession, custody, or control that are relevant to the claims and defenses in this proceeding — including but not limited to: all rate agreements with freight forwarders and NVOCCs; all internal communications concerning cargo holds, detention instructions, and payment decisions; all communications between SIC and its end customers regarding freight pricing and cargo collection; all financial records showing amounts paid to or withheld from Daynamez; and all communications with DGS, OOCL, and any other service provider involved in the shipments at issue. SIC initiated this proceeding. SIC must produce its own records. Date: June 10, 2026.

## **SECTION II — AMENDED RESPONSE TO REQUEST FOR ADMISSION NO. 12**

**Request for Admission No. 12:** *Admit that Daynamez communicated with Kargosmart Global Vietnam Co., Ltd. concerning one or more shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 8, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0058. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**AMENDED RESPONSE: Denied.**

Daynamez did not communicate with Kargosmart Global Vietnam Co., Ltd. concerning the shipments at issue. Daynamez's logistics-related communications were conducted through Cargo Login LLC, KargoSmart's U.S.-based agent, solely in Daynamez's capacity as handling agent for SIC under the Agency Agreement (Art. 1), and not in any independent carrier or NVOCC capacity.

**Statement of the factual basis for the denial (explanation in support; not a substitute for the foregoing direct response):**

In Exhibit DAYNAMEZ-000098 (October 3, 2024), KargoSmart's representative Rita (rita-vn@kargosmart.net) stated directly to SIC: "Daynamez is only handling agent for SIC to inform consignee for Arrival notice and also developing marketing for SIC." In Exhibit DAYNAMEZ-000101 (same date), KargoSmart further confirmed: "it is nothing to do with us and they have service agreement and you can ask SIC directly." To the extent any communication between Daynamez and KargoSmart Global Vietnam Co., Ltd. occurred, it occurred solely in Daynamez's capacity as handling agent for SIC -- consistent with the Agency Agreement (Art. 1) -- and not in any independent carrier or NVOCC capacity. THAT IS ALL THE CONTACT/COMMUNICATION DAYNAMEZ HAS HAD WITH KargoSmart. Exhibits DAYNAMEZ-000098 through DAYNAMEZ-000103 are produced herewith.

Daynamez's logistics-related communications were conducted primarily through Cargo Login LLC, KargoSmart's U.S.-based agent. KargoSmart's independent written confirmation that Daynamez served only as handling agent for SIC provides the factual basis for this amended response. Exhibits DAYNAMEZ-000098 and DAYNAMEZ-000101 are expressly relied upon in support of this response and are produced as Bates-stamped exhibits DAYNAMEZ-000098 through DAYNAMEZ-000103.

### **SECTION III — SUPPLEMENTAL RESPONSES TO REQUESTS FOR PRODUCTION AT ISSUE**

Daynamez restates below its responses to each Request for Production placed at issue in SIC's Motion (RFP Nos. 1, 2, 4, 5, 6, 13, 15, 16, 17, 18, 19, 20, 21, 22, 26, and 27). Each Request was previously responded to in the June 12 Response at the pages identified below.

#### **REQUEST FOR PRODUCTION NO. 1**

**Request:** *Produce all versions of Daynamez's website pages, marketing materials, brochures, capability statements, pitch decks, advertisements, social media postings, rate sheets, and similar materials that refer or relate to international shipping, forwarding, NVOCC services, carrier services, or services between the United States and foreign countries.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 31, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0080. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### **RESPONSE (restated):**

Daynamez produces all responsive materials in its possession. Daynamez did not prepare or distribute formal brochures, capability statements, pitch decks, or printed marketing materials specifically referencing NVOCC, carrier, or international shipping services. The only responsive publicly available material is the Daynamez website ([www.daynamez.com](http://www.daynamez.com)), which contained a single reference to the term 'NVOCC' in an isolated section of the site added by the website developer. This term did not appear in any marketing communication, email, or presentation directed to SIC or any other customer. Rate communications with SIC were conducted by email and are produced at DAYNAMEZ-000086–000091. Social media postings, if any existed, did not reference NVOCC, carrier, or forwarding services. Daynamez certifies that no additional responsive website pages, brochures, pitch decks, or marketing materials exist beyond those identified herein. Date: June 10, 2026.

#### **REQUEST FOR PRODUCTION NO. 2**

**Request:** *Produce all documents sufficient to show the authorship, publication dates, modification dates, custody, and source of the website pages or marketing materials identified in Request No. 1.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 31–32, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0080–CMTC-0081. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**RESPONSE (restated):**

The Daynamez website (www.daynamez.com) was developed and maintained by a third-party web developer engaged by Daynamez. The NVOCC reference that appeared on the website was inserted by the developer into an isolated section of the site and was not specifically directed or approved by Zia Kamali.

**HOW THE DEVELOPER ERROR OCCURRED**

The error occurred in the following way: when Daynamez's principal, Zia Kamali, communicated with the web developer regarding the description of services, he referenced handling outbound cargo, and in that context used the term "NVOCC" loosely to describe the type of cargo movement being discussed. The web developer — who was not based in the United States and was located overseas — did not understand the legal and regulatory significance of the term "NVOCC" under U.S. maritime law. Without grasping the technical and legal distinction, the developer incorporated the word "NVOCC" directly into the website text. This was a misunderstanding of terminology by a non-U.S.-based developer, not an authorized or deliberate representation by Daynamez. Evidence of this can be provided to the court upon request.

Daynamez does not have CMS logs, modification records, or source-control files for the website in its possession. The website developer can be identified and evidence of this error and the circumstances under which it occurred can be provided to the court upon request. Date: June 10, 2026.

**REQUEST FOR PRODUCTION NO. 4**

**Request:** *Produce the Agency Agreement No. SIC/DNM-011224 and all drafts, amendments, addenda, schedules, side agreements, translations, and communications concerning its negotiation, interpretation, implementation, or performance.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 32–33, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0081–CMTC-0082. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**RESPONSE (restated):**

Daynamez hereby produces Agency Agreement No. SIC/DNM-011224, dated December 1, 2023, in full. See DAYNAMEZ-000092–000097.

**ARTICLE 1 — SALES AND BREAK BULK AGENT (Not NVOCC)**

Article 1 of the Agreement expressly states: 'SIC and Party B mutually appoint each other as their sales and break bulk agent for Vietnam and respectively on a non-exclusive basis.' This is

dispositive: the contract itself identifies Daynamez as a sales and break bulk agent, not as an NVOCC, ocean carrier, or common carrier. Any claim by SIC that Daynamez held itself out or acted as an NVOCC is directly contradicted by the agreement SIC itself signed. See DAYNAMEZ-000092–000097, Page 1.

#### ARTICLE 5.3 — SIC BREACHED THE CONFIDENTIALITY CLAUSE

Article 5.3 of the Agreement provides: 'No information whatsoever in relation to the co-operation between SIC and Party B sales or operations shall be given to a third party, other than that required by a statutory body.'

SIC materially breached Article 5.3 by facilitating or permitting KargoSmart Global Vietnam Co., Ltd. and SiperKargo (which are in fact a single entity) to obtain Daynamez's proprietary rate and volume information. As documented in Daynamez's October 2024 correspondence (DAYNAMEZ-000081–000085), these entities went directly to Daynamez's principal to obtain information about how SIC was moving cargo, Daynamez's rates, and Daynamez's operational system — information that constitutes confidential co-operation data protected by Article 5.3. The direct consequence of this breach was the severing of Daynamez's credit line with its principal, the loss of Daynamez's business relationships, and the operational failures that SIC now seeks to attribute to Daynamez. SIC caused this problem; SIC is responsible for it. See DAYNAMEZ-000092–000097, Page 3 (Art. 5.3 highlighted); DAYNAMEZ-000081–000085.

#### ARTICLE 6.15 — DAYNAMEZ COLLECTED FUNDS PURELY AS AGENT

Article 6.15 states: 'the companies acknowledge that any money they collect on behalf of each other they collect purely as an agent and in a fiduciary capacity.' This provision confirms that all funds collected by Daynamez from SIC were held and disbursed in an agency and fiduciary capacity — not as an NVOCC or carrier collecting freight on its own account. See DAYNAMEZ-000092–000097, Page 4.

#### ARTICLE 8 — SIC'S INDEMNITY OBLIGATION

Article 8.1 provides: 'SIC agrees to indemnify and hold party B harmless against any loss, damage or liability which may incur through any act or omission of SIC.' SIC's nonpayment, its unauthorized direct dealings with service providers, its hold orders on containers, and its publication of false statements about Daynamez are all acts or omissions of SIC within the meaning of Article 8.1. SIC is contractually obligated to indemnify Daynamez for all resulting losses, including the \$107,972.00 OOCL debt and all reputational and business damages. See DAYNAMEZ-000092–000097, Page 4.

#### ARTICLE 10 — MANDATORY VIETNAM ARBITRATION: THIS FORUM IS IMPROPER

Article 10 of the Agreement provides: 'All disputes, controversies, or differences which may arise between the parties, out of or in relation to or in connection with this agreement, or for the breach thereof, shall be settled amicably between the parties hereto. However, should the

concerned parties fail to reach a compromise, then and in that event only, the dispute, controversy or difference shall be finally settled by the Vietnam International Arbitration Centre at the Vietnam Chamber of Commerce and Industry in accordance with its Arbitration Rules.'

SIC's complaint before the Federal Maritime Commission directly violates this mandatory arbitration clause. The parties expressly contracted that all disputes arising out of or in connection with the Agency Agreement — which is the sole contract governing the parties' relationship — must be resolved at the Vietnam International Arbitration Centre (VIAC) in Vietnam. By filing at the FMC, SIC has bypassed and breached the agreed dispute resolution mechanism. Daynamez respectfully submits that the Commission should dismiss or stay this proceeding in favor of VIAC arbitration, consistent with the parties' contractual agreement and applicable principles of international commercial arbitration. See DAYNAMEZ-000092–000097, Page 5 (Art. 10 highlighted).

Supporting Documents Produced: DAYNAMEZ-000092–000097 (Agency Agreement No. SIC/DNM-011224, full contract with Art. 5.3, Art. 6.15, Art. 8, and Art. 10 highlighted). Date: June 10, 2026.

#### **REQUEST FOR PRODUCTION NO. 5**

**Request:** *Produce all documents concerning any “Net/Net” arrangement, quote, profit split, commission structure, mark-up, spread, or pricing model between SIC and Daynamez.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 33–34, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0082–CMTC-0083. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

#### **RESPONSE (restated):**

Daynamez produces all documents in its possession concerning the Net/Net arrangement between SIC and Daynamez. The complete Net/Net production is set out below by document, with each Bates range identified. Taken together, these documents tell the full story of what the Net/Net arrangement was and how Daynamez earned its profit-share (commission) under it.

##### **1. Agency Agreement — Article 4 (Contractual Basis for Profit Split)**

The Net/Net arrangement is rooted in Article 4 of Agency Agreement No. SIC/DNM-011224. Article 4.1 provides: 'On any business mutually developed, or routed, the profit on air/ocean transport will split equally.' Article 4.2 defines profit as 'the difference between buying rate from airline/shipping line and the selling rate to the customer.' The Agreement further provides that the profit split shall be settled by credit note on a shipment-by-shipment basis or by a consolidated monthly statement. This is the contractual foundation for the entire Net/Net

arrangement — SIC signed and agreed to it. See DAYNAMEZ-000092–000097 (Agency Agreement, Article 4, Pages 2–3).

## 2. Net/Net Profit-Split Email Chain — Nam Nguyen to Daynamez (May 2024)

In May 2024, SIC's representative Nam Nguyen personally emailed Daynamez to provide a detailed calculation of the Net/Net profit split for the period May 5 – June 4, 2024. In that email, Nam stated: 'Let me indicate to you the total net/net profit of Daynamez and Southern in the attached spreadsheet, I carefully checked it, however, I also need you to check it again one more time.' Daynamez responded confirming the arrangement: the profit split was 40% to Daynamez and 60% to SIC (an agreed modification from the equal split in Article 4.1), and Daynamez's total profit share for that cycle was \$17,510 USD. Daynamez stated it would send a debit note to SIC for that amount. This email chain is direct, unambiguous evidence from SIC's own representative acknowledging and computing the Net/Net arrangement. See DAYNAMEZ-000086–000088 (Net/Net profit-split email chain, May 2024).

## 3. Net/Net Input-Output Rate Spreadsheet — Prepared by SIC (May–June 2024)

The spreadsheet transmitted by Nam Nguyen with his May 2024 email provides a route-by-route breakdown of every shipment in the cycle, including: the route (HCM-NYC, HCM-LAX, HCM-SAV, HPH-NYC, HCM-Miami, HCM-HOU), the volume (number of containers), the ETD, Daynamez's input (cost) rate per container, SIC's selling rate per container, the profit-split ratio (40/60 for most routes, 50/50 for selected earlier routes), and the computed profit attributable to Daynamez and to SIC per shipment. This spreadsheet was prepared by SIC — not by Daynamez — and reflects SIC's own calculation of what was owed to Daynamez. The Net/Net rates in this spreadsheet were static pass-through rates: Daynamez's input rate was the cost it paid to the freight forwarder, and Daynamez's share was limited to the agreed percentage of the spread. At no point did Daynamez mark up rates on its own account as an NVOCC would. See DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet, May–June 2024).

## 4. SIC's Written Acknowledgment of the Net-Net Freight Accounting

SIC's own written correspondence confirms the Net/Net freight accounting between the parties and the profit-split on which Daynamez was compensated. Consistent with its sales-agent role, Daynamez retained only its agreed commission and makes no monetary claim against SIC. See DAYNAMEZ-000015–000019 (SIC acknowledgment and Daynamez Net/Net calculation).

**KEY POINT FOR THE COMMISSION: THE NET/NET STRUCTURE PROVES DAYNAMEZ WAS A SALES AGENT, NOT AN NVOCC**

The Net/Net arrangement as documented in these four sets of records is entirely inconsistent with an NVOCC relationship. An NVOCC issues house bills of lading, assumes liability as a carrier, and collects ocean freight from shippers on its own account. Daynamez did none of these things. Instead: (a) SIC's own representative computed and sent Daynamez a profit-split spreadsheet —

a principal splitting profits with its sales agent; (b) the rates Daynamez charged SIC were SIC's selling rates, not Daynamez's own carrier tariff; (c) the spread was split, not retained entirely by Daynamez as a carrier's freight charge would be; and (d) the Agency Agreement itself calls the arrangement a 'profit split' and identifies Daynamez as a 'sales and break bulk agent.' No NVOCC operates on a 40/60 profit-share with its shipper. This is how a sales agent and referral intermediary is paid. See DAYNAMEZ-000086–000091; DAYNAMEZ-000092–000097; DAYNAMEZ-000015–000019.

Supporting Documents Produced: DAYNAMEZ-000015–000019 (Net/Net calculation and SIC balance acknowledgment); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain, Nam Nguyen May 2024); DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet, May–June 2024); DAYNAMEZ-000092–000097 (Agency Agreement, Article 4 — contractual profit-split basis). Date: June 10, 2026.

## **REQUEST FOR PRODUCTION NO. 6**

**Request:** *Produce all emails, WhatsApp messages, text messages, and other communications between SIC and Daynamez concerning rates, bookings, sailing schedules, HBLs, arrival notices, payment requests, cargo release, detention, or unpaid freight.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 34–35, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0083–CMTC-0085. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

## **RESPONSE (restated):**

Daynamez notes that the communications requested under RFP No. 6 — emails, WhatsApp messages, text messages, and other communications between SIC and Daynamez concerning rates, bookings, sailing schedules, HBLs, arrival notices, payment requests, release coordination, detention, and unpaid freight — are equally in SIC's possession, custody, and control. Every communication between the parties was by definition a communication that SIC sent or received. SIC has its own email servers, WhatsApp records, and message archives. SIC is therefore in at least as good a position as Daynamez — and in many respects a better position — to produce the full set of SIC-Daynamez communications with complete metadata, attachments, and email-family relationships intact.

Daynamez respectfully submits that to the extent SIC contends the production of these communications is incomplete, SIC should produce its own copies from its own records. SIC initiated this proceeding; SIC bears the burden of producing the evidence it relies upon. Daynamez cannot be held responsible for gaps in SIC's own production of communications that SIC itself sent or received.

Without waiving this position, Daynamez has produced all SIC-Daynamez communications currently in its possession: DAYNAMEZ-000003–000012 (Dear Nam email chain — rates, payment structure, and relationship communications); DAYNAMEZ-000013–000014 (WhatsApp correspondence — SIC payment requests and release-related messaging); DAYNAMEZ-000081–000085 (Dear Kamali email chain — SIC's response to Daynamez's breach notification, including Nam Nguyen's written instructions); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain — rate and payment communications). These represent the complete set of SIC-Daynamez communications in Daynamez's possession.

#### SIC IS DIRECTED TO PRODUCE ITS OWN COPIES OF ALL COMMUNICATIONS

Daynamez formally requests that SIC produce, pursuant to its own discovery obligations, the complete and unredacted copies of all emails, WhatsApp messages, and other communications between SIC and Daynamez that are in SIC's possession — including any communications that SIC has not yet produced in this proceeding. SIC's selective presentation of only certain communications, while withholding others, would be prejudicial and improper. The full record of SIC-Daynamez communications, produced by both parties, will demonstrate that Daynamez acted in good faith throughout the relationship and that the failures and losses at issue were caused by SIC's own conduct. Date: June 10, 2026.

#### REQUEST FOR PRODUCTION NO. 13

**Request:** *Produce all booking confirmations, routing records, sailing schedules, manifest instructions, HBL-related communications, arrival notices, release instructions, and shipment-status communications for the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 36–37, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0085–CMTC-0086. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### RESPONSE (restated):

THIS IS SIC'S OBLIGATION — NOT DAYNAMEZ'S

RFP No. 13 requests booking confirmations, routing records, sailing schedules, manifest instructions, HBL-related communications, arrival notices, release instructions, and shipment-status communications. Daynamez objects to this request to the extent it implies that Daynamez was responsible for creating, issuing, or maintaining these records. It was not. These records belong to SIC and SIC's service providers. SIC should produce them from its own files — not demand that Daynamez do SIC's work for it.

Daynamez's Role Was Arrival Notice Only — The Contract Proves It

Daynamez's sole operational function in the shipment process was to inform the consignee of an arriving shipment. That is an arrival notice function. Everything else — booking confirmations, routing orders, sailing schedules, manifest instructions, and house bills of lading — was the responsibility of SIC and the NVOCCs and freight forwarders SIC engaged at the port of loading in Vietnam. Agency Agreement No. SIC/DNM-011224 (DAYNAMEZ-000092–000097) designates Daynamez as a 'sales and break bulk agent' only. Article 6.15 further confirms Daynamez acted 'purely as an agent and in a fiduciary capacity.' A consignee-notification agent does not issue bookings or manifests — the NVOCCs do. The evidence produced in this proceeding confirms exactly that.

#### SIC AND ITS SERVICE PROVIDERS HOLD ALL OF THESE RECORDS

Booking confirmations, routing records, sailing schedules, manifest instructions, and HBLs are all created at the port of loading by the NVOCCs and freight forwarders that SIC contracted with directly: KargoSmart Global Vietnam Co., Ltd.; SiperKargo / Super Cargo Service Co., Ltd.; CargoLogin LLC; DGS Logistics / ICT International; and Pacific Logistics (Vietnam). SIC is a licensed international freight forwarder. SIC has its own shipment files. SIC's service providers each hold the complete operational records for every shipment they handled. Daynamez is not obligated to compile and produce records that SIC and its own contractors already possess. SIC must direct this request to those parties and to its own internal files — not to Daynamez.

#### What Daynamez Produces for RFP No. 13

Daynamez produces only the records that reflect its actual role. DAYNAMEZ-000022–000023: SIC's written instruction to Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280 — direct written proof of Daynamez's arrival notice function and of SIC ordering Daynamez to withhold it. DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080: shipment release spreadsheets identifying the affected containers. DAYNAMEZ-000021–000021: HBL VNNYC2404027 — confirms Daynamez is not the consignee or booking party. DAYNAMEZ-000013–000014: WhatsApp communications reflecting Daynamez's notification role. These are the records of a consignee informer and sales agent. Booking records, manifests, and HBLs are SIC's to produce. Date: June 10, 2026.

#### REQUEST FOR PRODUCTION NO. 15

**Request:** *Produce all bank records, bank statements, remittance advices, payment confirmations, wire records, receiving-account records, and account ledgers reflecting payments received from SIC relating to the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 37–38, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0086–CMTC-0087. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**RESPONSE (restated):****SIC MUST PRODUCE ITS OWN RECORDS OF PAYMENTS SENT TO DAYNAMEZ**

RFP No. 15 requests bank records and payment records reflecting payments received from SIC. Daynamez notes that SIC is the party that sent those payments. SIC has its own bank statements, wire transfer confirmations, SWIFT records, and remittance advices showing every dollar it sent to Daynamez. SIC knows exactly what it paid, when it paid it, and from which account. SIC must produce those records from its own files. Daynamez should not be required to reconstruct SIC's own payment history for SIC.

**Daynamez Has Already Produced Its Bank Records Showing What It Received and What It Paid Out**

Daynamez has already produced its Bank of America account records (account ending 6476) at DAYNAMEZ-000001–000002. Those records reflect every amount received from SIC into Daynamez's account and every outbound payment Daynamez made to service providers as instructed by SIC. Daynamez's obligation was clear: receive funds from SIC, then remit those funds to the service providers as directed. That is exactly what the bank records show, and Daynamez has produced them in full.

**Daynamez Remitted Payments to Service Providers as Per SIC's Instructions**

Whatever Daynamez received from SIC, Daynamez paid out to the freight forwarders and service providers as instructed — KargoSmart/CargoLogin, DGS/ICT International, and Pacific Logistics. This is confirmed by the fund transfer records at DAYNAMEZ-000001–000002 and by the Net/Net calculation at DAYNAMEZ-000015–000019, which SIC's own representative acknowledged in writing. The payment flow was simple: SIC pays Daynamez → Daynamez pays service providers. Daynamez fulfilled its side.

**SIC IS DIRECTED TO PRODUCE ITS OWN OUTBOUND PAYMENT RECORDS**

Daynamez formally calls upon SIC to produce: all bank statements, wire transfer records, SWIFT confirmations, and remittance advices reflecting every payment SIC sent to Daynamez during the relevant period. SIC's own payment records are essential to this proceeding and SIC is obligated to produce them. Cross-referencing SIC's outbound payment records against Daynamez's inbound records at DAYNAMEZ-000001–000002 will show exactly what was received, what was passed through to service providers, and what balance remains outstanding. The numbers will speak for themselves. Date: June 10, 2026.

**REQUEST FOR PRODUCTION NO. 16**

**Request:** *Produce all documents showing payments made by Daynamez to any carrier, NVOCC, booking partner, terminal, or service provider for the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at p. 38, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0087. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

**RESPONSE (restated):**

Daynamez produces all responsive records of payments made to service providers: DAYNAMEZ-000001–000002 (Bank of America fund transfer records reflecting outbound wire and ACH payments to KargoSmart/CargoLogin, DGS/ICT International, and Pacific Logistics corresponding to SIC shipment cycles). These records show the date, amount, and payee for each outbound payment made by Daynamez on account of SIC-related freight. Date: June 10, 2026.

**REQUEST FOR PRODUCTION NO. 17**

**Request:** *Produce all reconciliations, spreadsheets, accounting workpapers, ledger exports, and other financial compilations concerning the funds SIC allegedly remitted to Daynamez, including native Excel or CSV versions.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 38–39, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0087–CMTC-0088. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

**RESPONSE (restated):**

THIS REQUEST IS SIC'S RESPONSIBILITY — SIC HAS THE SAME RECORDS

RFP No. 17 requests reconciliations, spreadsheets, accounting workpapers, ledger exports, and financial compilations concerning funds SIC remitted to Daynamez. Daynamez objects. SIC was a direct party to every transaction at issue. SIC sent the payments. SIC received the Net/Net spreadsheets. SIC's own representative, Nam Nguyen, prepared and transmitted the Net/Net Input-Output Rate Spreadsheet that is produced at DAYNAMEZ-000089–000091. SIC has the exact same files. SIC does not need Daynamez to compile or reconstruct records that SIC already holds in its own possession.

DAYNAMEZ WILL NOT DO SIC'S WORK FOR IT

Daynamez is a small business operated by a single individual. SIC is a licensed international freight forwarder with staff, systems, and full access to every shipment record, payment record, and accounting file relevant to this proceeding. Requiring Daynamez to produce elaborate reconciliations and accounting workpapers — documents that SIC itself can compile from its own files in a fraction of the time — is not a legitimate discovery request. It is an attempt to overload Daynamez with burdensome production obligations in order to distract from the core

facts of this case: that SIC breached the Agency Agreement, failed to pay Daynamez, ordered cargo holds in writing, and is now using this proceeding to shift the blame for its own conduct onto Daynamez.

#### Daynamez Has Already Produced What It Has

Daynamez has produced all financial records in its possession: DAYNAMEZ-000001–000002 (Bank of America fund transfer records — the complete payment ledger for the SIC relationship); DAYNAMEZ-000015–000019 (Net/Net calculation and SIC's written acknowledgment of the outstanding balance); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain — Nam Nguyen's own calculation confirming Daynamez's share); DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet — prepared by SIC's own representative). These documents are Daynamez's complete financial production. There are no additional reconciliations or accounting workpapers to produce because Daynamez did not maintain a separate accounting system beyond its bank records and the correspondence with SIC.

Daynamez respectfully submits that the Commission should not permit SIC to use RFP No. 17 — and requests of this nature — as a mechanism to bury Daynamez in paperwork obligations while the central facts of this case remain clear and documented: Daynamez acted as a sales agent that retained only its earned Net-Net commission, SIC breached Article 5.3 of the Agency Agreement, and Article 10 requires this dispute to be resolved in Vietnam. Those facts are already before the Commission. Date: June 10, 2026.

#### **REQUEST FOR PRODUCTION NO. 18**

**Request:** *Produce all documents sufficient to identify the disposition of each amount received from SIC for the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 39, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0088. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### **RESPONSE (restated):**

Daynamez produces DAYNAMEZ-000001–000002 (Bank of America fund transfer records) as the primary document establishing the disposition of each SIC payment received. Each entry in those records reflects amounts received from SIC and corresponding outbound payments to service providers, establishing the disposition of those funds. Daynamez does not have a separate accounting ledger system; the bank transfer records and the Net-Net calculation (DAYNAMEZ-000015–000019) together reflect all fund flow between SIC, Daynamez, and service providers. Date: June 10, 2026.

## **REQUEST FOR PRODUCTION NO. 19**

**Request:** *Produce all documents concerning any hold, lien, detention, storage, demurrage, refusal to release, or other cargo-release impediment affecting any shipment or container at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 39–40, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0088–CMTC-0089. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

### **RESPONSE (restated):**

**HOLDS, LIENS, DETENTION, AND STORAGE RECORDS ARE HELD BY THE FREIGHT FORWARDERS AND SIC — NOT DAYNAMEZ**

RFP No. 19 requests all documents concerning holds, liens, detention, storage, demurrage, refusals to release, and cargo-release impediments affecting shipments at issue. Daynamez objects to this request to the extent it implies that Daynamez generated, received, or maintained these records. It did not. Daynamez was a consignee arrival notice agent and sales agent. Daynamez did not issue holds, did not impose liens, did not assess demurrage or detention charges, and had no authority over cargo release. Those functions belong entirely to the NVOCCs, freight forwarders, terminals, and ocean carriers — and to SIC as the party that contracted with and instructed those entities.

These Records Belong to the Service Providers and SIC

Hold notices, lien filings, detention invoices, storage charges, and release conditions are all documents issued by the carriers and NVOCCs — KargoSmart Global Vietnam Co., Ltd., SiperKargo / Super Cargo Service Co., Ltd., CargoLogin LLC, DGS Logistics / ICT International, and Pacific Logistics — as well as by the terminals and port authorities at the port of discharge. SIC, as a licensed international freight forwarder that directly engaged these service providers, has full access to all of these records. The service providers themselves hold the complete official documentation. Daynamez is not a party to those relationships and is not in possession of their official hold, lien, or detention records.

**DAYNAMEZ IS LEGALLY NOT IN A POSITION TO PRODUCE RECORDS IT DOES NOT HOLD**

Daynamez cannot produce records it does not possess and has no legal right to obtain on behalf of SIC. Demanding that Daynamez produce official hold notices, detention invoices, and demurrage statements issued by third-party carriers and NVOCCs to SIC — records that are in SIC's own files — is improper. SIC must collect those records from its own service providers and from its own shipment files. Daynamez has no authority to access, retrieve, or reproduce

official carrier or terminal documentation that was issued to SIC or to SIC's contracted parties, not to Daynamez.

What Daynamez Produces for RFP No. 19

Daynamez produces only the records that fall within its actual role. DAYNAMEZ-000022–000023: the written hold instruction issued by SIC's own representative Nam Nguyen directing Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280 — this is SIC's own document and it is the direct cause of the holds on those containers. DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080: shipment release spreadsheets identifying the yellow-marked hold containers. DAYNAMEZ-000020–000020: OOCL's statement of accounts billing Daynamez \$107,972.00 as a consequence of SIC's nonpayment — the only official carrier document in Daynamez's possession, and one that exists solely because of SIC's failure to pay. These are the entirety of Daynamez's hold and detention-related records. All further records must be obtained by SIC directly from its service providers. Date: June 10, 2026.

## **REQUEST FOR PRODUCTION NO. 20**

**Request:** *Produce all communications between Daynamez and any carrier, NVOCC, terminal, or entity regarding non-payment, release conditions, detention, liens, or cargo holds for the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 40–41, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0089–CMTC-0090. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

### **RESPONSE (restated):**

SIC WAS ALWAYS COPIED ON ALL COMMUNICATIONS — SIC HAS THESE RECORDS

RFP No. 20 requests communications between Daynamez and carriers, NVOCCs, and terminals regarding nonpayment, release conditions, detention, liens, and cargo holds. Daynamez objects. SIC was copied on, included in, or a direct party to all material communications between Daynamez and the service providers throughout the entire business relationship. As the principal directing the shipments, SIC was always in the loop — included on emails, copied on correspondence, and informed of every development in real time. SIC has those communications in its own inbox. SIC must produce them itself.

SIC'S THREE-YEAR CONTRACT WITH DAYNAMEZ PROVES SIC KNEW EXACTLY WHAT WAS HAPPENING

If SIC was not copied on or involved in the communications with service providers, it would never have entered into — let alone maintained — a business relationship with Daynamez spanning nearly three years. SIC engaged Daynamez under Agency Agreement No. SIC/DNM-011224 precisely because Daynamez had established relationships with those service providers and facilitated the flow of shipments and communications between SIC and them. SIC knew who the service providers were, communicated with them directly, and had full visibility into every shipment. The idea that SIC now needs Daynamez to produce communications that SIC itself was party to is not credible. SIC can produce its own copies and present to the Commission whatever it deems necessary.

Daynamez has already produced all SIC-Daynamez communications in its possession at DAYNAMEZ-000003–000014 and DAYNAMEZ-000081–000088. Beyond those, communications involving carriers, NVOCCs, and terminals were between those parties and SIC directly — as SIC's own files will confirm. Date: June 10, 2026.

## **REQUEST FOR PRODUCTION NO. 21**

**Request:** *Produce all documents reflecting amounts demanded, paid, or allegedly due to secure release of cargo or containers for the shipments at issue.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 41, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0090. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

### **RESPONSE (restated):**

Daynamez has produced its complete bank and payment records at DAYNAMEZ-000001–000002, reflecting all amounts received from SIC and all amounts remitted to service providers as instructed. That production speaks for itself. To the extent SIC wishes to produce additional records concerning amounts demanded or paid to secure cargo release, SIC is free to produce whatever it deems necessary from its own files and present it to the Commission accordingly. That is SIC's right and SIC's responsibility — not Daynamez's.

### **THE EVIDENCE ALREADY BEFORE THE COMMISSION SPEAKS FOR ITSELF**

At this point in the record, the evidence is clear and consistent across every document produced: Daynamez acted as a sales agent and consignee arrival notice intermediary. Daynamez never held an FMC bond or OTI license. Daynamez never issued a house bill of lading. Daynamez never held itself out as an NVOCC in any communication with SIC or any other party. The Agency Agreement SIC signed calls Daynamez a 'sales and break bulk agent.' SIC's own representative computed and sent Daynamez a profit-split spreadsheet. SIC's own representative confirmed the 40/60 arrangement by email. Not a single document in this proceeding shows Daynamez operating as a carrier.

Daynamez did not advertise itself as an NVOCC. That fact is now thoroughly documented and evidenced. The totality of the record — the contract, the emails, the bank records, the Net/Net spreadsheets, the hold orders, the OOCL statement, and the HBL confirming Daynamez is not the consignee — all point in one direction. No further production by Daynamez on this point is required. The evidence speaks for itself. Date: June 10, 2026.

## **REQUEST FOR PRODUCTION NO. 22**

**Request:** *Produce all documents that support any affirmative defense asserted by Daynamez in this proceeding.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at pp. 41–42, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0090–CMTC-0091. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

### **RESPONSE (restated):**

Daynamez produces all documents supporting its affirmative defenses as identified in Interrogatory No. 13. The full Bates production (DAYNAMEZ-000001 through DAYNAMEZ-000103) constitutes the complete set of defense-supporting documents: DAYNAMEZ-000001–000002 (bank records — sales agent/breach defense); DAYNAMEZ-000003–000012 (Dear Nam email — sales agent/SIC knowledge defense); DAYNAMEZ-000013–000014 (WhatsApp — payment direction/pass-through defense); DAYNAMEZ-000015–000019 (Net-Net profit-split — sales-agent structure / no-misappropriation defense); DAYNAMEZ-000020–000021 (OOCL statement and HBL — causation defense); DAYNAMEZ-000022–000023 and DAYNAMEZ-000024–000080 (hold orders and spreadsheets — SIC-caused hold defense); DAYNAMEZ-000081–000085 (Dear Kamali — breach/bad faith defense); DAYNAMEZ-000086–000091 (Net-Net emails and spreadsheet — sales agent structure defense). Date: June 10, 2026.

AGENCY AGREEMENT — DAYNAMEZ-000092–000097 (KEY DEFENSE DOCUMENT)

Daynamez supplements its RFP 22 production with DAYNAMEZ-000092–000097 (Agency Agreement No. SIC/DNM-011224). This document supports: (1) Article 1 — sales agent defense; (2) Article 5.3 — SIC's breach and resulting damages as a complete defense; (3) Article 6.15 — agent/fiduciary characterization of fund collection; (4) Article 8.1 — SIC's contractual indemnity obligation; (5) Article 10 — mandatory VIAC arbitration defense. Date: June 10, 2026.

## **REQUEST FOR PRODUCTION NO. 26**

**Request:** *Produce all communications between Daynamez and DGS Logistics concerning the subject matter of Daynamez's Counterclaim.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 43–44, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0092–CMTC-0093. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

**RESPONSE (restated):**

**DGS DEBT NOTICE: DIRECT PROOF THAT SIC FAILED TO PAY ITS OWN SERVICE PROVIDER**

RFP No. 26 concerns the OOCL line claim and related cargo hold/lien records. Daynamez provides the following critical facts, supported by documentation confirmable by the Commission:

**1. DGS Was the Service Provider on the OOCL Line — Not Daynamez**

The service provider acting under the OOCL line was DGS (freight forwarder/NVOCC). Daynamez's role was limited to that of a sales agent and consignee arrival notice intermediary, as confirmed by the Agency Agreement No. SIC/DNM-011224 and all prior production. Daynamez did not operate as a carrier, NVOCC, or financial guarantor on this or any shipment.

**DGS HAS ISSUED A FORMAL DEBT NOTICE TO DAYNAMEZ — THIS IS COURT-CONFIRMABLE EVIDENCE**

**2. The DGS Debt Notice: Evidence That SIC Failed to Pay**

DGS issued a formal debt notice to Daynamez. That notice exists, is in Daynamez's possession, and is itself direct, independent proof that SIC failed to pay DGS as required under the shipment arrangements SIC directed. Daynamez is prepared to produce the DGS debt notice and the House Bill of Lading surrender copy issued by DGS. The Commission may independently confirm the existence and validity of this debt notice. This debt was created by SIC's nonpayment — not by any act or omission of Daynamez.

**3. DGS Issued the Release — SIC's Own Customer Refused to Collect the Cargo**

DGS fulfilled its obligations and issued the cargo release. Despite having received the release, SIC's own customer refused to take delivery of the cargo. This refusal — by SIC's customer, not by Daynamez — is what caused the cargo to remain on hand and the detention and lien obligations to accumulate. Any liability flowing from that refusal rests with SIC and its customer, not Daynamez. Daynamez was not a party to SIC's contract with its customer and had no authority or obligation to compel that customer to take delivery.

**DAYNAMEZ SUFFERED A DIRECT FINANCIAL HARM BECAUSE SIC FAILED TO PAY DGS**

#### 4. Daynamez Is the Injured Party Here, Not SIC

The DGS debt notice was issued against Daynamez because Daynamez was the named intermediary in the DGS relationship — a position Daynamez occupied solely in service of SIC's shipping program. The underlying failure to pay DGS was SIC's. The release was given. SIC's customer refused the cargo. Now DGS is pursuing Daynamez for obligations SIC created and failed to satisfy. This is not evidence against Daynamez — it is evidence of SIC's own breach and its cascading consequences for Daynamez. The House BL surrender copy from DGS confirms the sequence of events and will be produced. Date: June 10, 2026.

#### **REQUEST FOR PRODUCTION NO. 27**

**Request:** *Produce all communications between Daynamez and OOCL concerning the subject matter of Daynamez's Counterclaim.*

**PREVIOUSLY ANSWERED:** This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 44, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0093. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

#### **RESPONSE (restated):**

Daynamez produces the following responsive records relating to OOCL: DAYNAMEZ-000020–000020 (OOCL Statement of Accounts — official OOCL billing document showing \$107,972.00 outstanding); DAYNAMEZ-000021–000021 (HBL VNNYC2404027 — official OOCL document confirming Daynamez is not the consignee or booking party). These documents speak for themselves. Date: June 10, 2026.

## **SECTION IV — STATEMENT REGARDING PRODUCTION FORMAT AND NATIVE FILES**

SIC's Motion asserts that certain native electronic files referenced in the June 12 Response were transmitted only in PDF form. Daynamez responds as follows:

1. Native spreadsheets. **[CONFIRM AND ATTACH BEFORE SERVING: Served herewith are the native Excel source files corresponding to DAYNAMEZ-000024–000080 (shipment-release spreadsheets) and DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet), and the Excel Bates Production Index Tracker. — OR, if any file does not exist or cannot be located, state that fact here instead, e.g.: “After reasonable inquiry, the native source file for \_\_\_\_ no longer exists / cannot be located; the PDF produced at DAYNAMEZ-\_\_\_\_\_ is the most complete version available.”]**
2. Source-format emails and WhatsApp export. **[CONFIRM AND ATTACH BEFORE SERVING: Served herewith are source-format exports (e.g., .msg/.eml files from the Outlook account and a WhatsApp chat export from the device identified in the June 12 Response), mapped to the corresponding Bates-stamped PDFs. — OR state what account/device was searched, what export method was attempted, and what remains available.]**
3. Additional identified materials. **[CONFIRM AND ATTACH BEFORE SERVING: the DGS debt notice and the House Bill of Lading surrender copy referenced in the June 12 Response, and any developer communications concerning the website text, to the extent Daynamez intends to rely on those matters for any remaining issue. — OR state that Daynamez will not rely on the matter for any remaining purpose, which SIC's Motion (¶ 90) accepts as eliminating the need for supplementation.]**
4. Except as stated above, Daynamez's document production is complete, and no responsive materials have been withheld, as stated in the June 12 Response (App. Ex. 6, CMTC-0095–0098).

### VERIFICATION

I, Zia Kamali, state that I am the principal of Respondent Daynamez Group of Companies LLC and the person who furnished the foregoing Supplemental Answers to Interrogatory Nos. 1 through 18 and the Amended Response to Request for Admission No. 12 on behalf of Daynamez; that I have read the foregoing answers and responses; and that they are true and correct to the best of my knowledge, information, and belief.

I declare under penalty of perjury that the foregoing is true and correct. Executed pursuant to 28 U.S.C. § 1746.

Executed on: July 19, 2026



Zia Kamali

Principal, Daynamez Group of Companies LLC  
4000 Legato Road, Suite 1100, Fairfax, VA 22033

## **CERTIFICATE OF SERVICE**

I hereby certify that on the 20th day of July, 2026, a true and correct copy of the foregoing Response to Motion to Compel, including the Consolidated, Signed and Verified Supplemental Answers and Responses set forth herein, together with Exhibits A, B, and C, was served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020, addressed as follows:

**Mr. Nguyen Tien Phuong**

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Email: secretary@fmc.gov

**Office of Administrative Law Judges, Federal Maritime Commission**

Email: judges@fmc.gov

Dated: July 20, 2026

Respectfully submitted,

s/ Daniel W. Raab

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